

SOLICITATION, OFFER AND AWARD			1. This Contract Is A Rated Order Under DPAS (15 CFR 700) ➡		Rating DOA6	Page 1	of 107	Pages
2. Contract Number		3. Solicitation Number W15QKN-25-R-0040		4. Type of Solicitation ☐ Sealed Bid (IFB) ☒ Negotiated (RFP)		5. Date Issued		6. Requisition/Purchase Number SEE SCHEDULE
7. Issued By ARMY CONTRACTING COMMAND - NJ CCNJ-CA PICATINNY ARSENAL, NJ 07806-5000			Code W15QKN	8. Address Offer To (If Other Than Item 7)				

NOTE: In sealed bid solicitations 'offer' and 'offeror' mean 'bid' and 'bidder'.

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if handcarried, in the depository located in _____ until _____ (hour) local time _____ (Date).

Caution - Late Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. For Information Call: ➡		A. Name JEREMY CONTRERAS		B. Telephone (No Collect Calls)			C. E-mail Address JEREMY.P.CONTRERAS.CIV@ARMY.MIL	
				Area Code (520)	Number 669-8046	Ext.		

11. Table Of Contents

(X)	Sec.	Description	Page(s)	(X)	Sec.	Description	Page(s)
Part I - The Schedule				Part II - Contract Clauses			
X	A	Solicitation/Contract Form	1	X	I	Contract Clauses	51
X	B	Supplies or Services and Prices/Costs	5	Part III - List Of Documents, Exhibits, And Other Attach.			
X	C	Description/Specs./Work Statement	22	X	J	List of Attachments	73
X	D	Packaging and Marking	33	Part IV - Representations And Instructions			
X	E	Inspection and Acceptance	41	X	K	Representations, Certifications, and	74
X	F	Deliveries or Performance	42			Other Statements of Offerors	
X	G	Contract Administration Data	47	X	L	Instrs., Conds., and Notices to Offerors	90
X	H	Special Contract Requirements	49	X	M	Evaluation Factors for Award	101

OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. Discount For Prompt Payment (See Section I, Clause No. 52.232-8) ➡	10 Calendar Days (%)	20 Calendar Days (%)	30 Calendar Days (%)	Calendar Days (%)
---	----------------------	----------------------	----------------------	-------------------

14. Acknowledgment of Amendments (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):

15A. Name and Address of Offeror		Code	Facility	16. Name and Title of Person Authorized to Sign Offer (Type or Print)			
15B. Telephone Number		15C. Check if Remittance Address is ☐ Different From Above - Enter such Address In Schedule		17. Signature		18. Offer Date	
Area Code	Number	Ext.					

AWARD (To be completed by Government)

19. Accepted As To Items Numbered		20. Amount	21. Accounting And Appropriation	
22. Authority For Using Other Than Full And Open Competition: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()			23. Submit Invoices To Address Shown In (4 copies unless otherwise specified) ➡	
24. Administered By (If other than Item 7) Code			25. Payment Will Be Made By Code	
26. Name of Contracting Officer (Type or Print)			27. United States Of America (Signature of Contracting Officer)	
			28. Award Date	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 2 of 107
--------------------	--	---------------

Name of Offeror or Contractor:

SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: JEREMY CONTRERAS
 Buyer Office Symbol/Telephone Number: CCNJ-CA/(520)669-8046
 Type of Contract 1: Firm Fixed Price
 Kind of Contract: Supply Contracts and Priced Orders

*** End of Narrative A0000 ***

EXECUTIVE SUMMARY
 This executive summary highlights some of the important features of this solicitation. If a conflict exists between this summary and the provisions of the solicitation, the provisions of the solicitation govern.

1. Introduction

The U.S. Army Contracting Command - New Jersey, in support of Project Manager, Combat Ammunition Systems (PM-CAS), has a requirement to procure 120mm Mortar Shell Bodies. The shell bodies to be produced under this effort will support the Load/Assemble/Pack (LAP)of the M929 White Phosphorous (WP) Smoke/M930 Visible Light (VL) Illuminating and M983 Omfrared (IR) Carrtridge/m931 Full Range Practice Cartridge (FRPC) and M933A1/M934A1 High Explosive (HE) 120mm Shell Bodies. Objective: Thecontractor shall manufacture, produce and deliver the M929 White Phosphorous (WP) Smoke/M930 Visible Light (VL) Illuminating and M983 Omfrared (IR) Carrtridge/m931 Full Range Practice Cartridge (FRPC) and M933A1/M934A1 High Explosive (HE) 120mm Shell Bodiesusing the United States Government (USG) Technical Data Packages (TDPs) in accordance with the Statement of Work (SOW) in Section C and all Request for Proposal (RFP) requirements. The contractor shall provide for all necessary labor, material, supplies, services, facilities, and equipment to perform all of the requirements of the SOW and contract.

2. Acquisition Strategy

The Acquisition Strategy is to award multiple, five-year Indefinite Delivery, Indefinite Quantity (IDIQ) contracts with Firm Fixed-Price (FFP) Delivery Orders for 120 mm Mortar Shell Bodies. Competition will be restricted to Offerors within the National Technology and Industrial Base (NTIB) in order to create or maintain the required domestic capability for production of critical supplies, as implemented by Federal Acquisition Regulation (FAR) 6.302-3(b)(1)(i). As defined in 10 United States Code (USC) 4801, the NTIB currently includes the United States, the United Kingdom of Great Britain and Northern Ireland, Australia, New Zealand, and Canada. Award will be made to the best overall proposal(s) that is determined to be the most beneficial to the Government. The Government reserves the right to make a single award if it is determined to be in the best interest of the Government. The following minimum guarantee and maximum amount are for the items being procured under this contract, which has a Period of Performance (PoP) of five years.

Minimum guarantee per contract: \$6,000,000.00
 Maximum contract value for all contracts: \$333,935,744.00

The Contracting Officer is the only Government representative with the authority to issue delivery orders against this contract.
 Delivery Orders will be transmitted and received via e-mail.

Delivery Orders will be competed among the Offerors who have been awarded IDIQ base contracts. Foreign Military Sales (FMS) requirements will be identified on an individual delivery order basis, should the requirement arise. It is anticipated that Delivery Orders will generally be placed annually. However, Delivery Orders may be placed more or less often to accommodate changing needs of the Department of Defense.

3. Technical Data Packages (TDPs)

The TDPs are marked Distribution D (Limited to DoD and US DoD contractors only). Disclosure and use of the TDPs are restricted by the Non-Disclosure and Non-Use Agreement (NDA) that the offeror is required to execute prior to accessing the TDPs along with a current DD2345 Military Critical Technical Data Agreement, and AMSTA-AR Form 1350 Technical Data Questionnaire (All forms can be found in Section J).

Some technical documents contain export-control technical data and are subject to the following warning: EXPORT-CONTROL WARNING - All technical documents that are determined to contain export-controlled technical data shall be marked WARNING - This document contains technical data whose export is restricted by the Arms Export Control Act (Title 22, U.S.C., Sec 2751, et. seq.) or the Export Administration Act of 1979, as amended, Title 50, U.S.C., App. 2401 et. seq. Violations of these export laws are subject to severe criminal penalties. Disseminate in accordance with provisions of DoD Directive 5230.25. When it is technically infeasible to use the entire statement, an abbreviated marking may be used, and a copy of the full statement added to the Notice To Accompany Release of Export-Controlled Data required by DoD Directive 5230.25.

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 3 of 107
	PIIN/SIIN W15QKN-25-R-0040 MOD/AMD	
Name of Offeror or Contractor:		

All foreign firms are required to have an export control license in order to view the TDPs and to manufacture or export the items under this solicitation.

The offeror shall not reproduce, duplicate or copy the TDPs, or any portion thereof, except to the extent necessary for, and then only in connection with the preparation and/or submission of proposals related to this procurement being affected by the United States Government. This rule applies to distribution of the TDPs to all SUBCONTRACTORS at every level. To be eligible to gain access to the export controlled TDPs, you must have a current DD 2345 Militarily Critical Technical Data Agreement, an NDA, and the AMSTA-AR Form 1350 Technical Data Questionnaire. To obtain DD 2345 certification, go to <https://www.dla.mil/Logistics-Operations/Services/JCP/>, click on documents, and follow instructions provided. Processing time is estimated at three days after receipt.

THE CERTIFICATE OF DESTRUCTION (Attachment 0007 Section J) MUST BE SENT TO THE POINT OF CONTACT FOR THIS SOLICITATION NO LATER THAN 10 DAYS AFTER RECEIPT OF AN UNSUCCESSFUL OFFEROR LETTER OR NO LATER THAN 10 DAYS AFTER THE SOLICITATION CLOSES AND THE VENDOR DECIDES NOT TO SUBMIT A PROPOSAL.

Upon completion of the purposes for which Government Technical Data has been provided, the Contractor is required to destroy all documents, including all reproductions, duplications, or copies thereof as may have been further distributed by the Contractor.

Destruction of this Technical data shall be accomplished by: shredding, pulping, burning, or melting any physical copies of the TDP and/or deletion or removal of downloaded TDP files from computer drives and electronic devices, and any copies of those files.

4. Proposal Submission

All proposals are to be submitted in accordance with the instructions in the Solicitation. Award(s) will be made to the offeror(s) whose proposal offers the Best Value to the Government in accordance with Section M of this Solicitation. The Government assumes no liability whatsoever regarding the likelihood that orders will be placed for any particular quantities above the guaranteed minimum amount under the proposed IDIQ Contract.

The Government intends to issue the first delivery order for at least the contract minimum guarantee amount, and shall be awarded within 10 days of the base contract award. Additionally, the Government reserves the right to award quantities that are above and beyond the contract minimum guarantee in the first delivery order.

THE PRICE APPLICABLE TO AN INDIVIDUAL ORDER IS THE PRICE FOR THE ORDERING PERIOD IN WHICH THE ORDER IS ISSUED. THE DELIVERY DATE DOES NOT DETERMINE THE ORDERING YEAR.

5. Disclosure of Unit Prices

This constitutes notification pursuant to Executive Order 12600, Pre-Disclosure Notification Procedures for Confidential Commercial Information (June 23, 1987), of our intention to release unit prices in response to any request under the Freedom of Information Act, 5 USC 552. Unit price is defined as the contract price per unit or item purchased. We consider any objection to be waived unless the contracting officer is notified of your objection to such posting prior to submission of initial proposals.

6. General Information to Offerors or Quoters

1. Responses must set forth full, accurate and complete information as required by this solicitation (including attachments). Fill-ins are provided on Standard Form 33, and other solicitation documents. Examine the entire solicitation carefully. The penalty for making false statements is prescribed in 18 U.S.C. 1001.

2. Responses must be plainly marked with the Solicitation Number and the date and local time set forth for bid opening or receipt of proposals in the solicitation document.

3. Information regarding the timeliness of response is addressed in the provision of the solicitation entitled either Late Submission, Modification and Withdrawal of Bid or Instructions to Offerors Competitive Acquisitions.

4. Procurement Information

This Procurement is being solicited using Other Than Full and Open Competition in accordance with Title 10 U.S.C. 3204(a)(3) as implemented by FAR 6.302-3(b)(1)(i).

5. Issuing Office

U.S. Army Contracting Command - New Jersey ATTN:
Office Symbol: ACC-NJ- ,NJ Email:

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 4 of 107
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

6. Point of Contact for Information:
Name: Jeremy P. Contreras
Title: Contract Specialist
Email: jeremy.p.contreras.civ@army.mil

7. Questions

All questions concerning this RFP procurement, either technical or contractual must be submitted in writing to Army Contracting Command - New Jersey. No direct discussion between the technical representative and a prospective Offeror will be conducted. Questions shall be sent to the following points of contact via email: Contracting Officer John C. Scott at john.c.scott.civ@army.mil and Contract Specialist Jeremy P. Contreras at jeremy.p.contreras.civ@army.mil.

*** END OF NARRATIVE A0001 ***

DRAFT

Name of Offeror or Contractor:

SECTION B - SUPPLIES OR SERVICES AND PRICES/COSTS

This contract will be a Firm-Fixed Price Indefinite Quantity Indefinite Delivery Contract. The length of this contract is five years and it contains five one-year Ordering Periods. The maximum contract value is \$333,935,744.00. The Government is only obligated to award a minimum guarantee of \$6,000,000.00. The period of performance shall be 60 months from contract award or when the maximum contract value is reached, whichever comes first.

A Year/Ordering Period (OP) is defined as:

- Year 1 (OP1) is defined as the period of 12 months from the date of contract award: and
- Year 2 (OP2) is defined as the period of 12 months from the end of Year 1: and
- Year 3 (OP3) is defined as the period of 12 months from the end of Year 2: and
- Year 4 (OP4) is defined as the period of 12 months from the end of Year 3: and
- Year 5 (OP5) is defined as the period of 12 months from the end of Year 4.

Note: Deliver destinations will be provided upon award of individual Delivery Orders. The shipping Department of Defense Activity Address Code (DoDAAC) W15QKN is only a placeholder until such time that a ship to destination is defined. No production quantities should be shipped to Picatinny Arsenal.

Multiple Ordering Window: The resultant contract will include a Multiple Order Window of 60 days. In the event that the Government has a requirement for a new delivery order to be placed within 60 days of a previously issued delivery order for the same item(s), the quantity of the current order shall be combined with the quantity from the preceding order to arrive at the cumulative quantity. The current delivery order will be priced at the contract price from the appropriate quantity and ordering period for the cumulative quantity.

*** END OF NARRATIVE B0002 ***

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 6 of 107
--------------------	--	---------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1001	<u>120MM INITIAL FAT</u> SERVICE REQUESTED: 120MM INITIAL FAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____
1002	<u>120MM ADDITIONAL FAT</u> SERVICE REQUESTED: 120MM AFAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____
1003	<u>120MM HE OP1</u> NSN: 1315-01-604-6483 COMMODITY NAME: 120MM HE OP1 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 7 of 107
--------------------	--	---------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1004	SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>120MM FRPC OP1</u> NSN: 1315-02-604-6499 COMMODITY NAME: 120MM FRPC OP1 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061385 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$	\$
1005	<u>120MM SMK OP1</u> NSN: 1315-01-604-6498 COMMODITY NAME: 120MM SMK OP1 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12953497 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin			\$	\$

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 8 of 107
--------------------	--	---------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
1006	<u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>120MM ILLUM OP1</u> NSN: 1315-01-604-6494 COMMODITY NAME: 120MM ILLUM OP1 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12967865 NSN, Mfr CAGE and Mfr Part Number refers to front illum. Rear illum information is as follows: NSN: 1315-01-604-6495 Mfr Cage: 19200 Mfr Part Number: 12967864 (End of narrative A001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
2001	<u>120MM INITIAL FAT</u> SERVICE REQUESTED: 120MM INITIAL FAT CLIN CONTRACT TYPE: Firm Fixed Price				\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 9 of 107
--------------------	--	---------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2002	<u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> 120MM ADDITIONAL FAT SERVICE REQUESTED: 120MM AFAT CLIN CONTRACT TYPE: Firm Fixed Price				\$ _____
2003	<u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> 120MM HE OP2 NSN: 1315-01-604-6483 COMMODITY NAME: 120MM HE OP2 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 10 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2004	120MM FRPC OP2 NSN: 1315-01-604-6499 COMMODITY NAME: 120MM FRPC OP2 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
2005	120MM SMK OP2 NSN: 1315-01-604-6498 COMMODITY NAME: 120MM SMK OP2 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12953497 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 11 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
2006	<u>120MM ILLUM OP2</u> NSN: 1315-01-604-6494 COMMODITY NAME: 120MM ILLUM OP2 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12967865 NSN, Mfr CAGE and Mfr Part Number refers to front illum. Rear illum information is as follows: NSN: 1315-01-604-6495 Mfr Cage: 19200 Mfr Part Number: 12967864 (End of narrative A001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
3001	<u>120MM INITIAL FAT</u> SERVICE REQUESTED: 120MM INITIAL FAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 12 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
3002	<u>120MM ADDITIONAL FAT</u> SERVICE REQUESTED: 120MM AFAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____
3003	<u>120MM HE OP3</u> NSN: 1315-01-604-6483 COMMODITY NAME: 120MM HE OP3 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
3004	<u>120MM FRPC OP3</u> NSN: 1315-02-604-6499 COMMODITY NAME: 120MM FRPC OP3 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061385			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 13 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	<u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
3005	<u>120MM SMK OP3</u> NSN: 1315-01-604-6498 COMMODITY NAME: 120MM SMK OP3 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12953497			\$ _____	\$ _____
	<u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
3006	<u>120MM ILLUM OP3</u> NSN: 1315-01-604-6494 COMMODITY NAME: 120MM ILLUM OP3 CLIN CONTRACT TYPE: Firm Fixed Price			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 14 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	Mfr CAGE: 19200 Mfr Part Number: 12967865 NSN, Mfr CAGE and Mfr Part Number refers to front illum. Rear illum information is as follows: NSN: 1315-01-604-6495 Mfr Cage: 19200 Mfr Part Number: 12967864 (End of narrative A001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
4001	<u>120MM INITIAL FAT</u> SERVICE REQUESTED: 120MM INITIAL FAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____
4002	<u>120MM ADDITIONAL FAT</u> SERVICE REQUESTED: 120MM AFAT CLIN CONTRACT TYPE: Firm Fixed Price				\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 15 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4003	<u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> <u>120MM HE OP4</u> NSN: 1315-01-604-6483 COMMODITY NAME: 120MM HE OP4 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
4004	<u>120MM FRPC OP4</u> NSN: 1315-02-604-6499 COMMODITY NAME: 120MM FRPC OP4 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061385 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 16 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
4005	<u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000 <u>120MM SMK OP4</u> NSN: 1315-01-604-6498 COMMODITY NAME: 120MM SMK OP4 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12953497 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$ _____	\$ _____
4006	<u>120MM ILLUM OP5</u> NSN: 1315-01-604-6494 COMMODITY NAME: 120MM ILLUM OP5 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12967865 NSN, Mfr CAGE and Mfr Part Number refers to front illum. Rear illum information is as follows: NSN: 1315-01-604-6495 Mfr Cage: 19200 Mfr Part Number: 12967864			\$ _____	\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 17 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	(End of narrative A001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
5001	<u>120MM INITIAL FAT</u> SERVICE REQUESTED: 120MM INITIAL FAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____
5002	<u>120MM ADDITIONAL FAT</u> SERVICE REQUESTED: 120MM AFAT CLIN CONTRACT TYPE: Firm Fixed Price <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u>				\$ _____

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 18 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5003	120MM HE OP5 NSN: 1315-01-604-6483 COMMODITY NAME: 120MM HE OP5 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061384 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL,NJ,07806-5000			\$	\$
5004	120MM FRPC OP5 NSN: 1315-02-604-6499 COMMODITY NAME: 120MM FRPC OP5 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 13061385 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL,NJ,07806-5000			\$	\$

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 19 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
5005	120MM SMK OP5 NSN: 1315-01-604-6498 COMMODITY NAME: 120MM SMK OP5 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12953497 <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000			\$	\$
5006	120MM ILLUM OP5 NSN: 1315-01-604-6494 COMMODITY NAME: 120MM ILLUM OP5 CLIN CONTRACT TYPE: Firm Fixed Price Mfr CAGE: 19200 Mfr Part Number: 12967865 NSN, Mfr CAGE and Mfr Part Number refers to front illum. Rear illum information is as follows: NSN: 1315-01-604-6495 Mfr Cage: 19200 Mfr Part Number: 12967864 (End of narrative A001) <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin			\$	\$

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	<u>Deliveries or Performance</u> FOB POINT: Destination SHIP TO: (W15QKN) XR W6QK ACC-PICA KO CONTRACTING OFFICE BUILDING 10 PHIPPS RD PICATINNY ARSENAL, NJ, 07806-5000				
6000	<u>CONTRACT DATA REQUIREMENTS LISTS (CDRLS)</u> The contractor shall prepare and deliver all data and information in accordance with the Statement of Work (SOW) and requirements set forth in the CDRLs provided in Exhibit A found in Section J. Unit Price is Not Applicable (N/A) as this CLIN is Not Separately Priced (NSP). A001 Engineering Change Proposal (ECP) A002 Notice of Revisions (NOR) A003 Request for Variation (RFV) A004 Quality Program Plan A005 QMS Audit Schedule A006 QMS Audit Report A007 Management Plan (PCCI) A008 Test inspection Report (LATR & FATR) A009 Contractor SOP A010 Process Control Documents A011 First Article Test Plan A012 Failure Summary and Analysis Report A013 PCA A014 Material Certification A015 Inspection Reports A016 MSE A017 Personnel Certification A018 CCCP A019 CPOA A020 Process Maps A021 ADC A022 Production Status Report A023 GFM Deficiency A024 Accident Report A025 Hazardous Waste Report A026 Contractor Summary Report A027 IMS A028 Meeting Minutes A029 OPSEC A030 Crticals (End of narrative A001)				

Name of Offeror or Contractor:

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
A001	CDRLS A001-A030 SERVICE REQUESTED: CDRLS Deliveries or Performance				\$

Name of Offeror or Contractor:

SECTION C - DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

STATEMENT OF WORK FOR 120MM MORTAR SHELL BODIES

C.1.0 Scope: This Statement of Work (SOW) defines the requirements for the manufacture, assembly, inspection, package and delivery of the following contract items: 120mm HE Cartridge Shell Body Assembly, 120mm FRP Cartridge Shell Body Assembly, 120mm Smoke Shell Body Assembly and Illumination Front and Rear, Cartridge Shell Bodies. Each of the components covered by this SOW requires forging capability. The shell bodies shall be produced to completely meet designated requirements. This will support a five-year indefinite delivery indefinite quantity (IDIQ) contract. The Government will issue delivery orders as required so that pre-qualified Contractors may compete for them to satisfy the requirements of PM-CAS. The quantity and schedule for delivery orders will be dependent on the Program Objective Memorandum (POM), Surge Requirements and Foreign Military Sales on an as-required basis from year to year.

C.1.1 Objective: The Contractor shall provide all the necessary labor, materials, supplies, facilities, and equipment to perform the requirements as specified below.

C.1.2 Background:

C.1.2.1 The M933A1/M934A1 High Explosive (HE) Cartridge Shell Body Assembly is 1) a hot forged steel shell body which is 120mm in diameter, approximately 16 inches long with a weight of approximately 20 lb and 2) a Fuze Adapter, a steel bar carbon cold finished metal component with a weight of approximately 1 lb. The M931 Full Range Practice (FRP) Cartridge Shell Body Assembly matches the M934A1 in size, shape and weight and includes a Fuze Adapter. The M929 White Phosphorous (WP) Smoke Cartridge Shell Body is a hot forged shell body is 120mm in diameter, approximately 16 inches long with a weight of approximately 20 lb. The M930 Visible Light (VL) Illuminating and M983 Infrared (IR) Cartridge Shell Body is a 2-piece assembly consisting of separately forged halves. The front shell body is approximately 10 inches long and 20 lb while the rear shell body is approximately 8 inches long and weighs approximately 5 lb; both halves are 120mm in diameter.

C.2.0 Applicable Documents: The Contractor shall use the following documents as appropriate to manufacture, assemble, inspect, package, and deliver the contract items.

C.2.1 Mandatory Documents: The following documents are mandatory for use in producing and delivering the contract items.

C.2.1.1 Government PRONs, Drawings, Specifications, and Standards:

Component	PRON	Drawing Number	Specification(s)
M933A1/M934A1 HE	P25C07	13061384	MIL-DTL-71038
			MIL-DTL-32352
M931 FRPC	P25C08	13061385	DTL12957020
			MIL-DTL-32352
M930/M983 Illum, Front	P25C09	12967865	DTL12967865
M930/M983 Illum, Rear	P25C10	12967864	DTL12967865
M929 Smoke	P25C11	12953497	MIL-DTL-71055

Note: All of the above listed Shell Bodies are Distribution Level D.

C.2.1.1.1 Exceptions: Please see Section J for a list of exceptions that apply to TDPs/PRONs listed in C.2.1.1.

C.2.1.2 Other Mandatory Government Documents:

Number	Title
MIL-STD-171	Finishing of Metal and Wood Surfaces
MIL-STD-1168	Ammunition Lot Numbering and Ammunition Data Cards
MIL-STD-1916	DoD Preferred Method for Acceptance of Product

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 23 of 107
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

MIL-STD-31000B Technical Data Package
MIL-STD-963C Data Item Descriptions
EIA-649-1-A National Consensus Standard for Configuration Management
TT-C-490 Cleaning Methods and Pretreatment of Ferrous Surfaces for Organic Coatings
DODD 4160.21-M-1, CE-04 Defense Material Disposition: Disposal Guidance and Procedures

C.2.1.3 Mandatory Non-Government Documents:

ANSI/ISO/IEC/17025:2017 General Requirements for the Competence of Testing and Calibration Laboratories
NAS410 NAS Certification & Qualification of Nondestructive Test Personnel

C.2.1.4 Reference Documents: The following documents are provided / listed for reference.

Number	Title
CFR 49 - Parts 100-180	Code of Federal Regulations
Z540.3-2006	ANSI/NCSL General Requirements for Calibration Laboratories and Measuring and Test Equipment
DODD 4160.21-M-1	Defense Demilitarization Manual
CE-01 RPT	ANSI/NISO Z39.18-2005 Scientific and Technical Reports - Elements Organization and Design
MIL-STD-973	Configuration Management
MIL-HDBK-1461A	Ammunition Manufacturers and Their Symbols
MIL-HDBK-683	Statistical Process Control (SPC) Implementation And Evaluation Aid

C.2.2 Order of Precedence: FAR 52.215-8 Order of Precedence Uniform Contract Format shall apply.

C.2.3 Data Item Description (DIDs):

Number	Title	Date
DI-SESS-80639E	Engineering Change Proposal (ECP)	11 FEB 2020
DI-SESS-80640E	Request for Variance (RFV)	11 FEB 2020
DI-SESS-80642E	Notice of Revision (NOR)	11 FEB 2020
DI-QCIC-81722	Quality Program Plan (QPP)	29 NOV 2006
DI-MGMT-80004A	Management Plan	30 OCT 2006
DI-NDTI-80809B	Test/Inspection Report	24 JAN 1997
DI-MGMT-81580	Contractors Standard Operating Procedure	09 AUG 1999
DI-NDTI-81307A	First Article Qualification Test Plan and Procedures	21 NOV 2006
DI-NDTI-80566A	Test Plan	14 NOV 2006
DI-SESS-80255B	Failure Summary and Analysis Report	15 OCT 2019
DI-MISC-82386	Certification/Data Report	12 JUL 2022
DI-QCIC-81960	Measurement System Evaluation (MSE)	25 FEB 2014
DI- MGMT-81986	Critical Characteristics Control Plan (CCCP)	14 JUL 2015
DI-MGMT-81996	Critical Plan of Action (CPOA)	08 SEP 2015

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 24 of 107
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

DI-SESS-81248B	Interface Control Document (ICD)	07 APR 2015
DI-MISC-80043B	Ammunition Data Card (ADC)	23 JUN 2009
DI-MGMT-81255	Production Status Report	02 MAR 1992
DI-QCIC-80736	Quality Deficiency Report	17 JAN 1989
DI-SAFT-81563	Accident/Incident Report	02 JUN 1998
DI-MGMT-82129	Hazardous Waste (HW) Report	08 JUN 2017
DI-ADMN-80447A	Contract Summary Report	08 NOV 2006
DI-MGMT-81861A	Integrated Program Management Report (IPMR)	16 SEP 2015
DI-MGMT-80934C	Operations Security (OPSEC) Plan	13 DEC 2010
DI-MGMT-81988	Critical Item Characteristics List	14 JUL 2015
DI-SAFT-81985	Notification Of Critical Non-Conformance Report	14 JUL 2015
DI-MGMT-81989	Critical Defect Investigation Report	14 JUL 2015

C.2.4 Security Requirements: This contract is UNCLASSIFIED. However, specifications and drawings for some of the components may contain export control data and restrictive distribution markings. Those specifications and drawings (TDPs) are indicated in the above chart as Distribution Level D. Requests for Distribution Level D TDPs shall be accompanied by a fully executed DD Form 2345, Militarily Critical Technical Data Agreement and a signed Non-Disclosure Agreement found in Section J, Attachment A003 and A004 respectively.

C.3.0 Requirements: Applicable to all contract items except where specifically identified in the paragraphs below.

C.3.1 Production: The Contractor shall manufacture, assemble, inspect, package, and deliver the contract items in accordance with documents listed in Paragraph C.2.1, Mandatory Documents. The Contractor shall be responsible for providing all equipment, tooling, and materials to include the shipping and packaging materials to deliver the aforementioned contract items, as directed by the delivery order.

C.3.1.1 Production Planning and Lotting: Contractor shall maintain and make available a production plan and schedule. The production plan and schedule shall demonstrate that the production lot size is optimal and stabilized. Lotting shall be in accordance with MIL-STD-1168.

C.3.2 Technical Data Package (TDP). Each component being procured is considered mature in nature and is being procured using a Government approved TDP. It is possible that engineering type change proposals may introduce technology insertion and/or horizontal integration to the existing components to improve their performance. Therefore, these components may be changed to some extent, however, their basic form, fit and function will remain the same.

C.3.2.1 Configuration Management: As applicable, engineering changes to the baseline configuration shall be submitted as an Engineering Change Proposal (ECP) in accordance with DD Form 1423 CDRL A001 (DI-SESS-80639E) to the U.S. Government for review and approval. The Contractor may submit Notice of Revisions (NOR) in accordance with DD1423 CDRL A002(DI-SESS-80642E) or Request for Variation (RFV) in accordance with DD Form 1423 CDRL A003(DI-SESS-80640E) to the U.S. Government for review and approval.

C.3.3 Quality Assurance:

C.3.3.1 Quality Management System (QMS): The Contractor shall implement and maintain a Quality Management System (QMS) that is compliant with or equivalent to ISO:9001:2015. Changes to the QMS shall not be implemented without the permission of the Contracting Officer.

C.3.3.1.1 Quality Management System (QMS) Audits and Annual Schedule: The Contractor shall develop and maintain within their QMS, a plan for quality system audits (including vendor/suppliers) to verify compliance to contract requirements. The plan shall include a schedule for when these audits will be conducted and the provisions for the Government to participate as part of the audit team. The Contractors audit schedules and audit reports shall be provided to the Government in accordance with Form 1423 CDRLs A005 and A006(No DIDs). The Contractor shall notify the Government 30 calendar days prior to any Subcontractor/vendor audit, so the Government may participate at their discretion.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 25 of 107
---	--	--

Name of Offeror or Contractor:

C.3.3.1.2 Quality Records. Quality Records shall be maintained at the place of performance and serve as objective evidence relative to the effectiveness of the Contractors QMS. Quality Records shall be submitted to the Government upon request. The Contractor shall provide the Government access to prime and Subcontractor facilities in support of regulatory surveys, inspections, and investigations.

C.3.3.1.3 USG Right to audit. At any time during this contract effort, the Government reserves the right to independently audit or examine the Contractors and any sub-Contractors QMS and Records for compliance to all contractual quality requirements. The Contractor shall ensure the necessary provisions are placed in all Subcontractor/vendor purchase orders/contracts to grant the Government access to perform these audits. The Contractor shall provide personnel and facilities to support the above audits.

C.3.3.2 Quality Program Plans (QPPs). The Contractor shall implement and maintain item specific Quality Program Plans to verify compliance with the drawings, specifications, and contract requirements for the items under this contract in accordance with DD Form 1423 CDRL A004 (DI-QCIC-81722).

C.3.3.3 Process Control System: After contract award, the Contractor shall develop and maintain a process control system in accordance with Section J.

C.3.3.3.1 Process Control Plan. The contractor shall develop and maintain a Process Control Plan (PCP) in accordance with Section J and DD1423 CDRL A010 (DI-MGMT-80004A) requirements. The PCP shall be submitted to the government for review and approval. Guidance for developing the required PCP can be found at in Section J, Exhibit A.

C.3.3.3.2 Process Control Documents (PCDs).

C.3.3.3.2.1 Statistical Process Control (SPC) Documents. Statistical Process Control (SPC) control charts, calculated process capability index (Cpk), and all variable data collected shall for the identified characteristics (not the associated process parameters) listed in Table g(1) of the PCCI clause referenced in Section J - Attachment A001 Contract Quality Requirements,) shall be shall be submitted to the Government as a part of the Lot Acceptance Test Report (LATR) per DD1423 CDRL A008 (DI-NDTI-80809B) and upon request. These charts shall identify all corrective actions taken on statistical signal. During production runs, control charts shall be maintained in such a manner to assure product is traceable to the control charts. At the conclusion of the production run, a collection of charts traceable to the product shall be maintained for a minimum of 3 years.

C.3.3.3.2.2 Coatings Pre-Production Procedures: In accordance with TT-C-490 and DD Form 1423 CDRL A009(DI-MGMT-81580), the Contractor shall submit detailed, zinc phosphate and paint PCDs. The procedure(s) shall include product names and manufacturers of all chemicals/materials to be used. All processes, equipment, and controls, along with the testing and test frequencies used for phosphating, including the application of supplemental finishes, shall also be included. The written procedure shall be submitted 60 calendar days prior to conducting FAT, or if FAT is waived, 60 days prior to start of production.

C.3.3.3.2.3 Coating Pre-Production Panels Approval: In accordance with TT-C-490 and DD1423 CDRL A009 (DI-MGMT-81580), the Contractor shall submit sample phosphate panels as well as phosphate and paint coating panels, and coating weights for government approval at least two weeks prior to FAT but no more than 30 days prior to the start of production of FAT Samples, or production if FAT is waived. The panels will be evaluated by the USG for adherence to the requirements of TT-C-490.

C.3.3.3.2.4 Friction Welding & Post-Weld Tempering PCDs: In accordance with DD Form 1423 CDRL A010(DI-NDTI-81307A), the Contractor shall submit PCDs for both the 120mm Smoke Shell Body Assemblys friction weld and the post-weld tempering operations for government approval. These documents shall include descriptions of procedures, equipment, process parameters, monitoring practices, calibration procedures and frequencies of testing for all listed control parameters. Additional requirements for PCDs, certifications and requalification can be found in paragraphs 6.15, 6.16, and 6.17 of MIL-DTL-71055.

C.3.3.4 Inspection System: The Contractor shall implement and maintain an inspection system acceptable to the Government covering components under this contract. The Contractor shall tender to the Government for acceptance only components that have been inspected in accordance with the inspection system and have been found by the Contractor to be in conformance with contract requirements. As part of the system, the Contractor shall prepare inspection records evidencing all inspections made under the system and the outcome. Upon request, the Contractor shall submit those inspection records as objective evidence of all inspections performed and their outcomes to the Government in accordance with Form 1423 CDRL A015(DI-NDTI-80809B Tailored).

C.3.3.4.1 Measurement System Evaluation (MSE): The Contractor shall implement and maintain an Acceptance Inspection Equipment/ Automated Acceptance Inspection Equipment (AIE/AAIE) program plan that is in accordance with the MSE requirement in Section E of this contract (ES6925/52.246-4018).

C.3.3.4.1.1 Acceptance Inspection Equipment (AIE) package. The Contractor shall submit documentation of all inspection and test equipment used to perform examinations and tests per required contract specifications in Paragraph C.2.1 Mandatory Documents in accordance with DD Form 1423 CDRL A016(DI-QCIC-81960 Tailored).

C.3.3.4.1.2 Automated Acceptance Inspection Equipment (AAIE) Prove-Outs: In accordance with the MSE requirements in Section E of this contract, prior to commencement of production of First Article Test (FAT) samples, the Contractor shall perform a prove-out of the AAIE (hydrostatic, ultrasonic, air leak, vision, etc) test equipment. The Contractor shall develop and submit prove-out plans to the

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 26 of 107
---	---	--

Name of Offeror or Contractor:

Government included in the AIE/AAIE package in accordance with DD Form 1423 CDRL A016 (DI-QCIC-81960 Tailored). The Government shall approve the prove-out plans and be invited to witness the prove-out tests.

C.3.3.4.1.3 Tool Control Inspections: In accordance with the MSE requirements in Section E of this contract, measurements of the tool may be substituted for component dimension inspections only with Government approval. The contractor shall establish a correlation between the tool dimension and the component dimension prior to substitution request submission to the Government. Permission shall be obtained from the Government for all tool control inspection substitutions and approval shall be determined based on contractor submission. Whenever a defective tool control (component or tool) dimension is found, immediate action shall be taken by the contractor to correct the tool problem, and all material produced since the last successful inspection shall be rejected. The contractor shall be responsible for maintaining adequate surveillance of the tool to assure the drawing requirements are being met throughout the life of the tools.

C.3.3.4.1.4 Visual Examination Acceptance Standards: In accordance with the MSE requirements in Section E of this contract, visual acceptance standards for evaluation of metal defects may be established for each contract items. Visual standards may be developed during FAT and/or after the first month of production and re-evaluated as needed. Establishment of these standards shall not waive the requirements for compliance with all of contract items documents listed in Paragraph C.2.1, Mandatory Documents.

C.3.3.4.1.5 Hydrostatic and Air Leak Test Failures: A failed seal or any kind of test equipment failure does not constitute a Hydrostatic or Air Leak test failure, but rather a no test. The component or components being tested when a no test occurs shall be treated as not having been tested. The component or components shall be retested IAW TDP requirements if they were not damaged during the no test. If the part is damaged, it shall be rejected and counted as a no test. If there is a question as to if there was a Hydrostatic test failure, or an equipment failure, the component shall be examined by the Government for conformance to the TDP to determine the appropriate classification.

C.3.3.4.1.6 Certification of Nondestructive Test (NDT) Personnel: In accordance with the MSE requirements in Section E of this contract, all personnel operating or calibrating NDT equipment shall be qualified and certified in accordance with NAS 410. Ultrasonic operators shall be Level I certified, Level II for set-up and calibration, and Level III in for approving written procedures. The Contractor shall submit to the Government Personnel Certifications in accordance with DD Form 1423 CDRL A017 (DI-MISC-82386) for all personnel performing quality acceptance inspections requiring specified levels of certification for this contract. Qualification to other standards must be submitted to the Government for approval in accordance with DD Form 1423 (DI-MISC-82386).

C.3.3.4.1.7 Secondary/Independent Verification/Inspection: Per the requirements of the individual item specifications (See paragraph C.2.1, Mandatory Documents), the contractor shall obtain both normal/regular and independent test results for mechanical properties and chemical analysis.

C.3.3.4.1.7.1 Tensile Test Sample Reduction. If the Contractor is producing multiple items under this contract, the samples for the secondary/independent verification of Tensile Testing shall be taken from a different item each month. The Contractor shall rotate which item they select for secondary/independent verification. If only one item is currently in production, the Contractor shall take samples from that item even if it was verified the previous month.

C.3.3.4.1.7.2 Certified Laboratories: The Contractor shall conduct all mechanical properties tests called out in the specification at a certified lab. A certified lab for the purposes of mechanical testing is defined as being in compliance with National Aerospace and Defense Contractors Accreditation Program (NADCAP) or ISO 17025. Testing may be performed in accordance with other equivalent specifications subject to Government approval.

C.3.3.4.1.7.3 Laboratory Independence. The regular and secondary testing shall occur in laboratories that are independent of one another. Laboratories may be a combination of in-house or outside laboratories, as long as at least one laboratory is not dependent upon or tied to the contractor.

C.3.3.4.1.7.4 Documentation of Regular and Secondary Verifications. Both the regular and secondary/independent verification test results shall be submitted as part of the LATR in accordance with DD1423 CDRL A008 (DI-NDTI-80809B).

C.3.3.4.1.7.5 Regular and independent test failures. The Contractor shall notify the Contracting Officer within two business days of a failure of any regular or independent test sample to meet the minimum yield strength, the percent elongation, or percentage difference between the two laboratories results as required by the TDP, initiate an investigation into the cause of the problem, and take corrective action to preclude further occurrences. The results of the investigation and the Contractor's proposed corrective action plan shall be provided in writing to the Contracting Officer in accordance with the applicable DD Form 1423 CDRL A012 (DI-SESS-80255B) and paragraph C.5.5 Failure Reporting, Analysis, and Corrective Action System. The Contractor's investigation results and proposed corrective action require approval by the Government Contracting Officer. Components produced since the last acceptable secondary test shall be considered suspect, segregated and held for disposition until the investigation is complete and the cause of the discrepancy is resolved. Disposition of the segregated components shall be approved by the Government Contracting Officer.

C.3.3.4.1.7.6 Retention of Metallurgical Test Samples: For a minimum of four months after test completion, the Contractor shall retain all test samples, specimens, and remnants of the projectile that the samples or specimens were taken from for both the regular and independent verification tests for all mechanical properties' tests called out in the specification and secondary verification of mechanical properties testing requirements. At the request of the Government, the Contractor shall retain the aforementioned test

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 27 of 107
---	--	--

Name of Offeror or Contractor:

samples, specimens, and remnants for a longer period of time, as deemed necessary by the Government. The extended period will not exceed four months after request for retention period extension.

C.3.3.5 Critical Characteristics Program:

C.3.3.5.1 Critical Characteristics Clause: Some of the TDPs contained within this solicitation may contain references to defects that may occur in the manufacturing process. There may be varying degrees of defects within the manufacturing process as delineated in the TDP. Some of these defects are classified as critical. Defects classified as critical have been determined to have the potential to cause either death or serious injury to users or friendly forces, to cause serious environmental damage, to cause serious financial loss, or to cause a potential for mission failure. As a result, special quality assurance provisions apply. If the TDP for an item contains references to critical defects, then the requirements contained in, Attachment A001 Contract Quality Requirements, CDRLS A018(DI-MGMT-81986), A019 (DI-MGMT-81996) and A030 (DI-MGMT-81988, DI-SAFT-81985, and DI-MGMT-81989) shall apply. These requirements include the Critical Characteristics Control Plan (CCCP) and the Critical Plan of Action (CPOA). The Critical Item Characteristic List (CICL), Notification of critical defect, Investigation and Corrective Action and Segregated Suspect material Use, and Request to Restart Operations shall be submitted in accordance with DD1423 CDRL A030(DI-MGMT-81988, DI-SAFT-81985, and DI-MGMT-81989).The requirements for the Control of Critical Characteristics shall apply to the prime Contractor and extend to all suppliers having processes that may contain Critical Characteristics or any materials/processes affecting Critical Characteristics.

C.3.3.5.2 Critical Characteristics Control Plan (CCCP) & Critical Plans of Action (CPOA): Government approval of the CCCP shall be required prior to commencing production. CCCP shall be submitted in accordance with DD Form 1423 CDRL A018 (DI-MGMT-81986). If contractor elects to use a CPOA, it shall be submitted for Government review in accordance with DD Form 1423 CDRL A019 (DI-MGMT-81996). The CPOA requires Government approval prior to implementation.

C.3.3.5.3 Guidance for developing the required CCCP and optional CPOA can be found in Section J, Exhibit A.

C.3.3.5.4 Draft and Final Critical Characteristics Process Maps: As part of the CCCP, the Contractor shall prepare Low Level Process Maps that describe how they are addressing all critical characteristics identified in the Technical Data Package. These Low Level Process Maps shall identify the creation and detection points for all critical characteristics while detailing the inputs, key activities performed, and outputs of each identified step. Draft Low Level Process Maps shall be provided to the Government 45 calendar days after contract award and finalized/baselined no later than 90 calendar days after contract award. Once a baseline Critical Characteristics Process Map has been established, the Contractor shall maintain the Low Level Process Maps current for the duration of the contract. The Contractor shall be responsible for providing the Low Level Process Maps in Contractor format in accordance with DD Form 1423 CDRL A020 (DI-SESS-81248B).

C.3.3.6 First Article Test (FAT): A First Article Test (FAT) shall consist of items and quantities cited in the specifications identified in Paragraph C.2.1, Mandatory Documents and shall be in accordance with Section X. The government shall be invited to witness production of First Article samples and will conduct/verify dimensional measurements of FAT samples.

C.3.3.6.1 First Article Test Plan (FATP). The Contractor shall submit a First Article Test Plan in accordance with DD Form 1423 CDRL A011 (DI-NDTI-80566A).

C.3.3.6.2 First Article Test (FAT) Variable Data: The Contractor shall be responsible for providing variable data for all dimensions, listed and unlisted, on the applicable drawings in the Technical Data Package (TDP). An alternate method of obtaining variables data shall be used for attribute type AIE gages. Variable data shall be provided during FAT and within the Inspection Test Report, even for features which will be measured using approved Acceptance Inspection Equipment (AIE) during production.

C.3.3.6.3 First Article Test Report (FATR). Upon the completion of testing and inspection, the Contractor is responsible for submitting an Inspection Test Report in accordance with DD Form 1423 CDRL A008(DI-NDTI-80809B).

C.3.3.6.4 First Article Failure Documentation. The Contractor shall submit a Failure Summary and Analysis Report in accordance with DD Form 1423 CDRL A012(DI-SESS-80255B) for each First Article failure.

C.3.3.6.5 Initial First Article Test (IFAT): The initial FAT is the first FAT awarded on the contract conducted after post award and prior to production start-up. This FAT is in accordance with the complete FAT requirements in this RFP. The U.S. Government plans to award an initial FAT no more than once per contract for each item.

C.3.3.6.6 Additional First Article Test: An Additional First Article Test may be required in accordance with Section E, Clause 52.209-4000 First Article Test (Government Testing), Clause 52.209-4001 First Article Test (Contractor Testing) or upon issuance of additional delivery order(s). Because the Subsequent FAT will be conducted at some time after production quantities have been delivered, mature processes and existing equipment are expected to be utilized to the maximum extent possible. Existing approved CDRL submissions from the initial FAT may be utilized provided they are unaffected by any changes.

C.3.3.7 Configuration Audits: At the option of the Government, the Integrated Product Team (IPT) may conduct a Physical Configuration Audit (PCA) assessing the conformance of the built hardware to the Technical Data Packages. Appendix H of MIL-STD-973 may be used as a

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 28 of 107 MOD/AMD
---------------------------	--	---

Name of Offeror or Contractor:

reference on the conduct of the audit. The Contractor shall be responsible for the performance of inspections and tests determined necessary by the Government to demonstrate conformance with the Technical Data Packages. The Contractor shall provide the Government with advanced notification and schedule of all activities while conducting Configuration Audit. The Contractor shall submit the data in accordance with CDRL A013, MIL-STD-963 (No DID). The audit shall consider materials, components, subassemblies and complete assemblies. The audit is conducted to establish that the final Technical Data Packages accurately, adequately and completely expresses the design and manufacturing details to the lowest level, to permit complete traceability and to ensure that the total system has been reviewed.

C.3.3.8 Conformance Inspection/Lot Acceptance Test and Report: The contractor shall conduct conformance inspection in accordance with applicable specifications. Resulting inspection/test data, including any anomalies encountered during the inspection/test of any accepted product, shall be provided in a Lot Acceptance Test Report (LATR) and submitted in accordance with DD1423 CDRL A008 (DI-NDTI-80809B).

C.3.3.9 Material Certifications: The Contractor shall certify that all materials and subcomponents provided in support of this effort comply with the Specifications and Applicable Drawings listed in Paragraph C.2.1, Mandatory Documents as part of the FATRs and LATRs. The Contractor shall submit the certifications in accordance with DD Form 1423 CDRL A014 (DI-MISC-82386). Certificates of Conformance shall not be considered as adequate evidence of material certification; test data is required from the certification procedures. The Contractor shall maintain their material certifications for all material used in the manufacture of deliverable items for this contract. These material certifications shall be submitted to the Government for review upon request.

C.3.3.10 Government Source Inspection (GSI): Defense Contract Management Agency (DCMA) or the Administrative Contracting Officer (ACO) Staff shall conduct GSI and in-plant contract/Quality Assurance actions as directed by the Contracting Officer. The Contractor shall provide DCMA and/or the ACO Staff with advanced notification and schedule of all activities requiring GSI and product acceptance. The Government reserves the right to conduct independent audits, inspections, and testing of products and services to ensure compliance with contract requirements.

C.3.4 Safeguarding Covered Defense Information and Cyber Incident Reporting: The Contractor shall use the following to supplement Defense Federal Acquisition Regulation Supplement (DFARS) Clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting.

C.3.5 System Security Plan and Plans of Actions and Milestones (SSP/POAM) Reviews:

(a) Within thirty (30) days of contract award, unless otherwise notified by the Government, the Contractor shall make its System Security Plan(s) (SSP(s)) for its covered contractor information system(s) available for review by the Government at the Contractor's facility. The SSP(s) shall describe how the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 security requirements are implemented as required by Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.204-7012, which is included in this contract, and identify all applicable Commercial and Government Entity Code codes affected. The Contractor shall fully cooperate in the Government's review of the SSPs at the Contractor's facility.

(b) If the Government determines that the SSP(s) does not adequately describe how the NIST SP 800-171 security requirements are implemented, then the Government shall notify the Contractor of each identified deficiency. The Contractor shall correct any identified deficiencies within thirty (30) days of notification by the Government. The contracting officer may provide for a correction period longer than thirty (30) days and, in such a case, may require the Contractor to submit a Plan of Action and Milestones (POAM) for the correction of the identified deficiencies. The Contractor shall immediately notify the contracting officer of any failure or anticipated failure to meet a milestone in such a POAM.

(c) Upon conclusion of the correction period, the Government may conduct a follow-on review of the SSP(s) at the Contractor's facilities. The Government may continue to conduct follow-on reviews until the Government determines that the Contractor has corrected all identified deficiencies in the SSP(s).

(d) The Government may, in its sole discretion or in response to a cyber incident, conduct subsequent reviews at the Contractor's site to verify the information in the SSP(s). The Government may conduct reviews at any time upon thirty (30) days' notice to the Contractor.

C.3.6 Compliance to NIST SP 800-171:

(a) The Contractor shall fully implement the Controlled Unclassified Information (CUI) Security Requirements (Requirements) in NIST SP 800-171 in effect at the time the solicitation is issued or as authorized by the Contracting Officer, or establish a SSP(s) and POAMs that varies from NIST SP 800-171 only in accordance with DFARS clause 252.204-7012(b)(2), for all covered contractor information systems affecting this contract.

(b) Notwithstanding the allowance for such variation, the Contractor shall identify in any SSP and POAM their plans to implement the following, at a minimum:

(1) Implement Requirement 3.5.3 (Multi-factor authentication). This means that multi-factor authentication is required for all users, privileged and unprivileged accounts that log into a network. In other words, any system that is not standalone should be required to utilize acceptable multi-factor authentication. For legacy systems and systems that cannot support this requirement, a combination of

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 29 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

physical and logical protections acceptable to the Government may be substituted;

(2) Implement Requirement 3.1.5 (least privilege) and associated Requirements, and identify practices that the Contractor implements to restrict the unnecessary sharing with, or flow of, covered defense information to its subcontractors, suppliers, or vendors based on need-to-know principles;

(3) Implement Requirement 3.1.12 (monitoring and control remote access sessions) Require monitoring and controlling of remote access sessions and include mechanisms to audit the sessions and methods;

(4) Audit user privileges on at least an annual basis;

(5) Implement Requirement 3.13.11 (Federal Information Processing Standards (FIPS) 140-2 validated cryptology or implementation of National Security Agency- or NIST-approved algorithms (i.e., FIPS 140-2 Annex A: Advanced Encryption Standard (AES) Or Triple Data Encryption Standard (DES) or compensating controls as documented in a SSP and POAM));

(6) Implement Requirement 3.13.16 (Protect the confidentiality of CUI at rest) or provide a POAM for implementation which can be evaluated by the Government Program Manager for risk to the program;

(7) Implement Requirement 3.1.19 (encrypt CUI on mobile devices) or provide a plan of action for implementation which can be evaluated by the Government Program Manager for risk to the program.

C.3.7 Cyber Incident Response:

(a) The Contractor shall, within fifteen (15) days of discovering the cyber incident (inclusive of the 72-hour reporting period in DFARS clause 252.204-7012), deliver all data used in performance of the contract that the Contractor determines is impacted by the incident and begin assessment of potential warfighter/program impact. Incident data shall be delivered in accordance with the Department of Defense Cyber Crimes Center (DC3) Instructions for Submitting Media available at http://www.acq.osd.mil/dpap/dars/pgi/docs/Instructions_for_Submitting_Media.docx. In delivery of the incident data, the Contractor shall, to the extent practical, remove contractor-owned information from Government covered defense information.

(b) If the Contractor subsequently identifies any such data not previously delivered to DC3, then the Contractor shall immediately notify the contracting officer in writing and shall deliver the incident data within ten (10) days of identification. In such a case, the Contractor may request a delivery date later than ten (10) days after identification. The contracting officer will approve or disapprove the request after coordination with DC3.

C.3.8 Army Counterintelligence (CI) Outreach: The Contractor shall engage, whenever practicable, with Army CI industry outreach efforts and consider recommendations for hardening of covered contractor information systems affecting Army programs and technologies; and make Contractor personnel available for threat briefings specific to foreign intelligence threats to Army programs and technologies.

C.3.9 Army CI/Industry Monitoring:

(a) In the event of a cyber-incident or at any time the Government has indication of a vulnerability or potential vulnerability, the Contractor shall cooperate with the Army CI, which may include cooperation related to: threat indicators; pre-determined incident information derived from the Contractor's infrastructure systems; and the continuous provision of all Contractor, subcontractor, or vendor logs that show network activity, including any additional logs the Contractor, subcontractor or vendor agrees to initiate as a result of the cyber incident or notice of actual or potential vulnerability.

(b) If the Government determines that the collection of all logs does not adequately protect its interests, the Contractor will coordinate with Army CI to implement additional measures, which may include allowing the installation of an appropriate network device that is owned and maintained by the Army CI, on the Contractor's information systems or information technology assets. The specific details (e.g., type of device, type of data gathered, monitoring period) regarding the installation of an Army CI network device shall be the subject of a separate agreement negotiated between Army CI and the Contractor. In the alternative, the Contractor may install network sensor capabilities or a network monitoring service, either of which must be reviewed for acceptability by Army CI. Use of this alternative approach shall also be the subject of a separate agreement negotiated between Army CI and the Contractor.

(c) In all cases, the collection or provision of data and any activities associated with this statement of work shall be in accordance with federal, state, and non-US law.

C.3.10 Controlled Unclassified Information: CUI is Government information to which access or distribution limitations have been applied in accordance with applicable national laws, regulations or government-wide policies. Contractor employees that will require access to CUI will follow all DoD (DoDI 5200.48) and Army policies regarding access to CUI, and the handling, storage, transmission, and destruction of CUI. Contractor employees are required to complete initial CUI training (available at <https://securityawareness.usalearning.gov/cui/index.html>) within 30 days of start of performance on the contract, and then annually thereafter. CUI may be transmitted electronically (e.g., data, website, or e-mail), via approved secure communications systems or systems utilizing other protective measures such as Public Key Infrastructure or transport layer security (e.g., https). Secure file transfer tools, such as the DoD Safe Access File Exchange (SAFE) website (<https://safe.apps.mil/>), should be utilized.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 30 of 107 MOD/AMD
Name of Offeror or Contractor:		

C.4 Ammunition Data Cards and Lot Numbering:

C.4.1 Ammunition Lot Numbers and Ammunition Data Cards: Ammunition Lot Numbers and Ammunition Data Cards shall be prepared in accordance with DD1423 CDRL A021 (DI-MISC-80043B) and MIL-STD-1168. Lot numbering shall follow the required format by the worldwide web application identified as WARP or Worldwide Ammunition Data Repository Program at <https://mhpwarp.redstone.army.mil/>. All Ammunition Data Cards must be submitted to the WARP system. If you do not have an account, or need access to WARP, upon award of contract, contact the appropriate Contracting Officer. All Ammunition Data Cards must be submitted to the WARP system. The contractor shall upload the LATR for each ADC generated. The Contractor shall generate hard copies of ADCs from WARP. The hard copies shall be signed and dated by the representative of the Government Agency Responsible for Acceptance (GARA) usually the DCMA QAR or other government designee. ADC hard copies shall accompany each Lot shipment.

C.4.2 Draft Ammunition Data Card: The Contractor shall submit a draft Ammunition Data Card (ADC) in accordance with DD Form 1423 CDRL A021 (DI-MISC-80043B) for review by the DCMA Quality Assurance Representative (QAR) and Integrated Product Team (IPT). The draft ADC will be reviewed by the QAR and IPT to ensure that it is complete and contains information in the correct format.

C.4.3 MHP-WARP Access:

C.4.3.1 WARP resides within the Munitions History Program (MHP). MHP-WARP uses PKI authentication requiring a DoD approved digital certificate as a security measure to protect the integrity of stored data. Contractors without CAC and AKO accounts shall be responsible to obtain a DoD approved digital certificate. The Contractor, including any Subcontractors, shall assume the responsibility for all costs of obtaining each digital certificate needed to gain access to MHP-WARP. There are three vendors that have been approved to issue DoD approved certificates per an External Certification Authority (ECA) program. The Contractor shall be required to use one of the approved vendors listed on the following DISA website: <http://iase.disa.mil/pki/eca/index.html>

C.4.3.2 Information Updates: System Administrators shall be advised when a Contractor receives a new contract. The Contractor shall notify USARMY.RIA.JMC.MBX.WARP@mail.mil within 30 calendar days after receipt of a new contract. Information to be included within the notification shall be the contract number, item, GARA, Manufacturer's identification symbol, and the names of the Contractors employees that will be inputting ADCs into the system. If the Contractor is a new producer and does not have a Manufacturer's identification symbol, the Contractor shall obtain one by sending a request to USARMY.RIA.JMC.MBX.WARP@mail.mil. The email shall contain manufacturer's name, address where performance of the contract shall take place, and a point of contact.

C.5 Reporting:

C.5.1 Contract Data Requirements: The Contractor shall provide all reporting requirements in accordance with the Contract Data Requirements List, DD Form 1423. Prior approval of CDRLs, i.e. AIE, PCCI, CPOA, CCCP, ADCs, on other USG contracts shall NOT guarantee roll-over approval of any CDRL, DD Form 1423.

C.5.2 Government approval of Acceptance Inspection Equipment (AIE) shall be required prior to FAT. Government approval of PCCI shall be required prior to acceptance of First Article Test (FAT). Sample Ammunition Data Cards (ADCs) shall be submitted into WARP system prior to acceptance of FAT. Government approval of the CCCP shall be required prior to commencing production.

C.5.3 Delayed Delivery Status Report: The contractor shall prepare a status report DD Form 1423 CDRL A022 (DI-MGMT-81255) in case of delays in production deliveries.

C.5.4 Quality Deficiency Report: The Contractor shall submit Product Quality Deficiency Reports (PQDRs) for any defective Government Furnished Material (GFM) utilized on this contract in accordance with DD Form 1423 CDRL A023 (DI-QCIC-80736).

C.5.5 Failure Reporting, Analysis, and Corrective Action System: At the Governments request, whenever there is a failure of the contract items to meet applicable specification, drawing, performance or safety requirements, the Contractor shall provide the Government a Failure Summary and Analysis Report in accordance with DD Form 1423 CDRL A012 (DI-SESS-80255B). The contractor shall be responsible for documenting the failure, performing an analysis to determine the root cause of the failure, and determining and implementing the appropriate corrective actions and preventative measures to prevent recurrence of the failure. The report shall discuss the techniques used to eliminate the root cause of the defect. The contractor shall also be responsible for 100% re-screening of any suspect lot(s) identified, and all the costs incurred to the contractor and Government in the investigation, re-inspection, corrective actions and preventative measures.

C.5.6 Monthly Production Status Report: The Contractor shall submit a monthly production status report in accordance with DD Form 1423 CDRL A023 (DI-MGMT-81255) that includes deliveries for the current month, cumulative deliveries to date per Contract Line Item Number (CLIN), next month's forecasted deliveries, production for the current month, cumulative production to date, next months forecasted production and SPC data prepared in accordance with C.3.3.2.2.1. For the purposes of the Monthly Production Status report(s), deliveries shall be product accepted by the Government with DD250.

C.5.6.1 Government Furnished Material (GFM) Inventory Status: If applicable, the Contractor shall submit a status of Government supplied

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 31 of 107
---	--	--

Name of Offeror or Contractor:

material on a monthly basis as a part of the Monthly Production Status Report. At a minimum, this shall include material balance at the start of the month, material supplied to the Contractor during the month, material that was removed from inventory during the month, and material balance at the end of the month. Material shall be identified by condition code and lot number (where possible). The Contractor shall identify if material balance at end of month supports the current and/or projected production needs. The Contractor shall submit the GFM inventory data file in the Contractors format, as a part of the Monthly Production Status Report.

C.5.7 Accident/Incident Reporting: The Contractor shall report to the Procuring Contracting Officer immediately any major accident/incident (including fire) resulting in any one or more of the following: causing one or more fatalities, or one or more disabling injuries; damage of Government property exceeding \$10,000; affecting program planning or production schedules; degrading the safety of equipment under contract, such that personal injury or property damage may be involved; identifying a potential hazard requiring corrective action. The Contractor shall prepare a report for each incident in accordance with DD Form 1423 CDRL A024 (DI-SAFT-81563).

C.5.8 Hazardous Waste Report: The Contractor shall evaluate environmental consequences and identify the specific types and amounts of hazardous waste being generated during the conduct of efforts performed under this contract. The Contractor shall submit this report in accordance with DD Form 1423 CDRL A025 (DI-MGMT-82129).

C.5.9 End of Contract Report: The Contractor shall submit an End of Contract Report CDRL A026 (DI-ADMN-80447A). This report shall detail the manufacturing experience, the operations utilized, the difficulties encountered during the operations, the financial performance summary and any suggestions for future production. This report shall be written using ANSI Z39.18 and the ARDEC Contract Report Style Guide, which may be obtained from the Contracting Officer.

C.6 Program Management:

C.6.1 Schedule and Plan: The Contractor shall maintain and update the Integrated Master Schedule (IMS) that is accepted by the Government at the time of award. The IMS shall be developed and maintained in accordance with DD Form 1423 CDRL A027 (DI-MGMT-81861A).

C.6.2 Integrated Product Teams (IPTs): The Contractor shall use and participate in IPTs in the management, test, and production processes.

C.6.3 Post Award Meeting: The Contractor shall host a post award meeting at the Contractors facility to include contracts, management, and technical personnel no later than (NTL) 30 calendar days after contract award. The Contractor shall provide the Government fifteen (15) calendar days notice prior to the date of the meeting. The Contractor, in conjunction with the Government, shall develop a detailed agenda within 5 calendar days prior to the scheduled meeting. In Contractor format, Contractor shall provide the Government with minutes of the post award meeting in accordance with DD Form 1423 CDRL A028 (No DID) NTL 15 calendar days after post award meeting.

C.6.4 Production Line Startup Readiness Review: The Contractor shall host a Production Line Startup Readiness Review with the Government prior to production of the First Article hardware. The Contractor shall provide the Government fifteen (15) calendar days notice prior to the date of the meeting.

C.6.5 Program Management Review (PMR): The Contractor shall host quarterly PMRs starting six months after contract award. The Contractor shall make his facility and appropriate personnel available for one day each quarter to host a meeting with Government. This meeting shall include a discussion of the Integrated Master Schedule (IMS), cost control strategies, quality control, SPC and production issues. The Contractor and the Government shall mutually derive meeting agenda, which is to be provided by the Contractor no later than five (5) working days prior to each review. The Contractor is responsible for providing PMR meeting minutes in accordance with DD Form 1423 CDRL A028 (No DID) within fifteen (15) calendar days after each PMR.

C.6.5.1 On a quarterly basis, as a part of the Program Management Review (PMR), the contractor shall prepare and submit SPC briefing charts in accordance with DD Form 1423 CDRL A007 (DI-MGMT-80004A). The purpose of these charts shall be to review and discuss the contractor's past quarter's SPC data collected, charted and analyzed, and Cpk values observed by the contractor. The briefing charts' focus areas for discussion shall include, but is not limited to, the contractor's trend analysis, investigations for special sources of variation observed, actions taken to minimize impacts of variations, and actions for continuous improvement and stabilization of the process.

C.6.6 Bi-Weekly Integrated Product Team (IPT) Meeting: During production, the Contractor and Government shall conduct bi-weekly meetings to discuss programmatic, quality, and manufacturing topics/issues, as needed. These meetings may be held at the Contractor site or by telephone.

C.7 Environmental Requirements:

C.7.1 All activities shall be in compliance with Federal, State, and local environmental laws and regulations, Executive Orders, Treaties and Agreements.

C.7.2 Environmental Review Meeting: The Contractor shall host one meeting with Government environmental engineers to review the various manufacturing processes used to produce the items under this contract and discuss manufacturing wastes and look at techniques to

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 32 of 107
---	---	--

Name of Offeror or Contractor:

minimize hazardous wastes. It is expected that this meeting would be conducted NLT 180 calendar days after contract award. The Contractor shall provide the Government fifteen (15) calendar days notice prior to the date of the meeting.

C.7.3 The contractor shall not use Class I or Class II Ozone Depleting Chemicals in the execution of the Program.

C.8 Demilitarization: At the conclusion of the contract the Contractor shall provide the Government with an inventory of all excess unaccepted Government-owned components, subassemblies and material for disposition instructions, including shipping instructions, and shall be dispositioned in accordance with those instructions. Items dispositioned as either scrap or destroy shall be destroyed, such that they are no longer usable or reclaimable for their original purposes.

At the conclusion of this contract, all Contractor-owned components, subassemblies, and material dispositioned as scrap, plus all excess energetic waste, and non-energetic waste shall also be destroyed, such that they are no longer usable or reclaimable for their original purposes.

Once it is destroyed, it shall be disposed of only as scrap. DODD 4160.21-M-1 CE-01 RPT, Defense Demilitarization Manual shall be used as a reference guide for accomplishment of this task.

C.9 Operation Security (OPSEC): The contractor shall develop an OPSEC Standing Operating Procedure (SOP)/Plan within 90 calendar days of contract award in accordance with DD Form 1423 CDRL A029 (DI-MGMT-80934C). The OPSEC SOP/Plan will be reviewed and approved by the responsible Government OPSEC officer, per AR 530-1, Operations Security. This SOP/Plan shall specify the governments critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. In addition, the contractor shall identify an individual who will be an OPSEC Coordinator. The contractor shall ensure that this individual becomes OPSEC Level II certified per AR 530-1. Per AR 530-1, Operations Security, new contractor employees must complete Level I OPSEC training within 30 calendar days of reporting for duty. All contractor employees must complete annual OPSEC awareness training.

C.10 Definitions:

C.10.1 Engineering Change Proposal (ECP): A vehicle by which engineering changes are made to the current approved technical data package. These changes are not contractor process specific.

C.10.2 Request for Variance (RFV): Contractor specific, temporary departures from requirements that must be approved by the Government after contract award. A contractor may request Government approval to utilize or incorporate items for manufacture that knowingly depart from requirements through an RFV. RFVs do not constitute a change to the approved technical data package. RFVs shall apply only to specified quantities, not the entire remaining number of deliverable items on the contract. Recurring RFVs shall be minimized.

C.10.3 Safety Critical Item (SCI): A part, assembly, installation or production system with one or more critical characteristics that, if not conforming to the design data or quality requirements, would result in an unsafe condition. Unsafe conditions include conditions that could cause loss of or serious damage to the end item or major components, loss of control, or serious injury to personnel.

C.10.4 Integrated Master Schedule (IMS): The detailed task and time of work effort. It is used by Government and contractor management as the primary tracking tool for technical and schedule status. The IMS is an integrated and networked multi-layered schedule of program tasks. The IMS is a networked schedule that identifies all events, accomplishments, and criteria and the expected dates of each based on the calendar dates provided as the starting point and the logical flow of dates provided by calculating the addition of duration of all tasks using the typical schedule networking tools.

C.10.5 Integrated Product Team (IPT): A team composed of representatives from all appropriate functional disciplines working together to build successful programs, identify and resolve issues, and make sound and timely recommendations to facilitate decision making. There are three types of IPTs: overarching IPTs (OIPs) focus on strategic guidance, program assessment, and issue resolution; working IPTs (WIPTs) identify and resolve program issues, determine program status, and seek opportunities for acquisition reform; and program level IPTs focus on program execution and may include representatives from both government and after contract award industry.

*** END OF NARRATIVE C0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 33 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

SECTION D - PACKAGING AND MARKING

Item: Adapter, Olive Drab: Adapter, Blue

1. Commercial packaging requirement shall not apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:

Preservation and packaging requirements shall be in accordance with SPI AM12577513.

b. Packing Requirements:

Packing requirements shall be in accordance with SPI AM12577513.

c. Marking Requirements:

Marking requirements shall be in accordance with SPI AM12577513

Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:

Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

Schedule and quantity to be determined.

4. Destination of delivered items.

XR GENERAL DYNAMICS PRODUITS DE DEF
5 MONTEE DES ARSENAUX
REPENTIGNY, CA J5Z2P4

5. Estimated weight of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 34 of 107
	W15QKN-25-R-0040 PIIN/SIIN	MOD/AMD

Name of Offeror or Contractor:

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

Item: Shell Body, Front for M930, M983 Cartridge, 120mm Mortar

1. Commercial packaging requirement shall not apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:

Preservation and packaging will be in accordance with Appendix A of this form and AC drawing 12967865.

b. Packing Requirements:

Packing requirements shall be in accordance with Appendix A of this form.

c. Marking Requirements:

Mark in accordance with Appendix A of this form.

Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:

Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

Schedule and quantity to be determined.

4.. Destination of delivered items.

W41G26
Pine Bluff Arsenal
504th St, Bldg 53 990
Central Receiving Pt.
Pine Bluff, AR 71602

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 35 of 107
	PIIN/SIIN W15QKN-25-R-0040 MOD/AMD	

Name of Offeror or Contractor:

5. Estimated wait of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

Item: Shell Body, Rear for M930, M983 Cartridge, 120mm Mortar

1. Commercial packaging requirement shall not apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:
Preservation and packaging will be in accordance with Appendix A of this form and AC drawing 12967864.

b. Packing Requirements:
Packing requirements shall be in accordance with Appendix A of this form.

c. Marking Requirements:
Marking requirements shall be in accordance with Appendix A of this form.
Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:
Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 36 of 107
	PIIN/SIIN W15QKN-25-R-0040 MOD/AMD	
Name of Offeror or Contractor:		

Schedule and quantity to be determined.

4. Destination of delivered items.

W41G26
Pine Bluff Arsenal
504th St, Bldg 53 990
Central Receiving Pt.
Pine Bluff, AR 71602

5. Estimated weight of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

Item: Body, Smoke for 120mm M929 Mortar Cartridge

1. Commercial packaging requirement shall apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:
Preservation and packaging will be in accordance with Appendix A of this form.

b. Packing Requirements:
Packing requirements shall be in accordance with Appendix A of this form.

c. Marking Requirements:
Mark in accordance with Appendix A of this form.
Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:
Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 37 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

Schedule and quantity to be determined.

4.. Destination of delivered items.

W41G26
Pine Bluff Arsenal
504th St, Bldg 53 990
Central Receiving Pt.
Pine Bluff, AR 71602

5. Estimated wait of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

Item: Body Assembly for 120mm M931 Full Range Practice Mortar Cartridges

1. Commercial packaging requirement shall not apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:

Preservation and packaging will be in accordance with Appendix A of this form and AC drawing 12957020.

b. Packing Requirements:

Packing requirements shall be in accordance with Appendix A of this form.

c. Marking Requirements:

Marking requirements shall be in accordance with Appendix A of this form.

Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:

Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 38 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

Schedule and quantity to be determined.

4. Destination of delivered items.

XR GENERAL DYNAMICS PRODUITS DE DEF
5 MONTEE DES ARSENAUX
REPENTIGNY, CA J5Z2P4

5. Estimated weight of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

Item: Body Assembly for 120mm M933A1/M934A1 HE Mortar Cartridges

1. Commercial packaging requirement shall apply to this procurement.

2. Detailed Packaging and Unitization Requirements shall apply to this procurement:

a. Preservation and Packaging Requirements:

Preservation and packaging will be in accordance with Appendix A of this form and AC drawing 12953514.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 39 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

b. Packing Requirements:

Packing requirements shall be in accordance with Appendix A of this form.

c. Marking Requirements:

Mark in accordance with Appendix A of this form.

Bar Code Requirements: No Bar Codes Required.

d. Unitization Requirements:

Standard Unitization: Shipments of identical items going to the same destination shall be palletized if they have a total cubic displacement of 50 cubic feet or more unless skids or other forklift handling features are included on the containers. Pallet loads must be stable, and to the greatest extent possible, provide a level top for ease of stacking. A palletized load shall be of a size to allow for placement of two loads high and wide in a conveyance. The weight capacity of the pallet must be adequate for the load. The preferred commercial expendable pallet is a 40 x 48 inch, 4-way entry pallet although variations may be permitted as dictated by the characteristics of the items being unitized. The load shall be contained in a manner that will permit safe handling during shipment and storage.

e. Additional Requirements or Applicable Exception(s)/Special Notes not covered in pervious sections:

1) Wood Packaging Materials - Heat Treatment and Marking of Wood Packaging Materials: In accordance with the requirements of International Standards for Phytosanitary Measures (ISPM) 15, the following commercial heat treatment process has been approved by the American Lumber Standards Committee (ALSC) and is required for all Wood Packaging Material (WPM). WPM is defined as wood pallets, skids, load boards, pallet collars, wooden boxes, reels, dunnage, crates, frames, and cleats. Packaging materials exempt from the requirements are materials that have undergone a manufacturing process such as corrugated fiberboard, plywood, particleboard, veneer and oriented strand board. All WPM shall be constructed from Heat Treated (HT to 56 degrees Centigrade for 30 continuous minutes) lumber and certified by an accredited agency recognized by the ALSC in accordance with Wood Packaging Material Policy and Wood Packaging Material Enforcement Regulations (see URL: <http://www.alsc.org>). All materials must include certification markings in accordance with ALSC standards and be placed in an unobstructed area that will be readily visible to inspectors. Pallet markings shall be applied to the stringer or block on diagonally opposite sides and ends of the pallet and be contrasting and clearly visible. All dunnage used in configuring and/or securing the load shall also comply with ISPM 15 and be marked with an ALSC approved DUNNAGE stamp. Failure to comply with the requirements of this restriction may result in refusal, destruction, or treatment of materials at the point of entry.

3. Number of items being procured and the delivery schedule.

Schedule and quantity to be determined.

4.. Destination of delivered items.

XR GENERAL DYNAMICS PRODUITS DE DEF
5 MONTEE DES ARSENAUX
REPENTIGNY, CA J5Z2P4

5. Estimated wait of the item in its shipping container:

Less than 200 pounds

6. Identify security classification of the material to be shipped.

Unclassified

7. Identify the DOT container marking (Proper Shipping Name and Identification Number) and the hazard classification (for ammunition and explosives) or check the appropriate block. When available, attach the Hazardous Component Safety Data Sheet or Material Safety Data Sheet showing the Proper Shipping Name and ID Number.

Non Hazardous (Identification Number and Proper Shipping Name not required)

8. Enter the appropriate Transportation Security Category for Arms, Ammunition or Explosives (AA&E) as categorized in DoD 5100.76-M:

Item is not AA&E

9. Government Furnished Property (GFP):

No GFP provided

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 40 of 107
Name of Offeror or Contractor:		

*** END OF NARRATIVE D0001 ***

DRAFT

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 41 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

SECTION E - INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
E-1	52.246-2	INSPECTION OF SUPPLIES--FIXED-PRICE	AUG/1996
E-2	52.246-16	RESPONSIBILITY FOR SUPPLIES	APR/1984
E-3	52.246-11	HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT	DEC/2014

- (a) The contractor shall comply with the higher-level quality standard(s) listed below.
- Quality Management System - Requirements: ISO 9001:2015
 - Tailed by excluding paragraph 7.3
- (b) The contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts in--
- (1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or
 - (2) When the technical requirements of a subcontract require--
 - (i) Control of such things as design, work operations, in-process control, testing and inspection; or
 - (ii) Attention to such factors as organization, planning, work instructions, documentation control, and advanced metrology.
 - (c) Additional quality requirements are found in Attachment 0001 "Contract Quality Requirements" in Section J.
- (End of clause)

Name of Offeror or Contractor:

SECTION F - DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
F-1	52.242-15	STOP-WORK ORDER	AUG/1989
F-2	52.242-17	GOVERNMENT DELAY OF WORK	APR/1984
F-3	52.247-34	F.O.B. DESTINATION (FEB 2006)	FEB/2006
F-4	52.247-48	F.O.B. DESTINATION--EVIDENCE OF SHIPMENT	FEB/1999
F-5	52.211-8	TIME OF DELIVERY	JUN/1997

(a) The Government requires delivery to be made according to the following schedule:

Delivery Destination

To be determined.

For the purpose of providing a quote, the following locations have been used historically for delivery of these items to the Load, Assemble, and Pack facility: Pine Bluff Arkansas and Repentigny (Quebec) Canada. Delivery destination will be indicated on individual delivery orders.

Delivery Date

First Article shall be delivered 270 days after Delivery Order award. Production deliveries shall begin 60 days after First Article approval. Contractor is authorized early deliveries upon Contracting Officer approval.

Quantity

Delivery shall be at a rate no less than those specified in Section M. The final delivery schedule will be determined upon placement of each Delivery Order.

(End of Clause)

F-6	252.211-7003	ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)	JAN/2023
-----	--------------	---	----------

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 43 of 107
----------------------------------	--	------------------------------

Name of Offeror or Contractor:

category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Governments unit acquisition cost" means

- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractors estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractors estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a

Name of Offeror or Contractor:

concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
N/A	

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number N/A.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number N/A.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 45 of 107
----------------------------------	---	------------------------------

Name of Offeror or Contractor:

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code--

- (A) Shall not be placed on the item; and
- (B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Governments unit acquisition cost.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 46 of 107
Name of Offeror or Contractor:		

- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods--

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number N/A, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 47 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

SECTION G - CONTRACT ADMINISTRATION DATA

Contact information is as follows:

CONTRACTING OFFICER:

John C. Scott
Army Contracting Command - New Jersey
CCNJ-CA, Combat Ammunition Systems
Bldg 10, Phipps Rd.
Picatinny Arsenal, NJ 07806-5000
john.c.scott.civ@army.mil

CONTRACT SPECIALIST:

Jeremy P. Contreras
Army Contracting Command - New Jersey
CCNJ-CA, Combat Ammunition Systems
Bldg 10, Phipps RD.
Picatinny Arsenal, NJ 07806-5000
jeremy.p.contreras.civ@army.mil

*** END OF NARRATIVE G0001 ***

Regulatory Cite	Title	Date
G-1 (a) Definitions. As used in this clause	252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023
Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.		
Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).		
Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.		
Payment request and receiving report are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.		
(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.		
(c) WAWF access. To access WAWF, the Contractor shall		
(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov ; and		
(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.		
(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the Web Based Training link on the WAWF home page at https://wawf.eb.mil/		
(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.		
(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:		
(1) Document type. The Contractor shall submit payment requests using the following document type(s):		
(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.		
(ii) For fixed price line items		

CONTINUATION SHEET**Reference No. of Document Being Continued**

W15QKN-25-R-0040

Page 48 of 107**PIIN/SIIN****MOD/AMD****Name of Offeror or Contractor:**

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice and Receiving Report (Combo)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

As required by each individual Delivery Order

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF combo document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	TBD
Issue By DoDAAC	W15QKN
Admin DoDAAC**	TBD
Inspect By DoDAAC	TBD
Ship To Code	See Individual Delivery Order
Ship From Code	N/A
Mark For Code	N/A
Service Approver (DoDAAC)	N/A
Service Acceptor (DoDAAC)	N/A
Accept at Other DoDAAC	N/A
LPO DoDAAC	N/A
DCAA Auditor DoDAAC	N/A
Other DoDAAC(s)	N/A

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert See Schedule or Not applicable.)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Not Applicable

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

CONTINUATION SHEET**Reference No. of Document Being Continued****Page 49 of 107**

PIIN/SIIN

W15QKN-25-R-0040

MOD/AMD

Name of Offeror or Contractor:**SECTION H - SPECIAL CONTRACT REQUIREMENTS****H.1.0 Basis of Award for Delivery Orders**

Delivery Orders will be based on the needs of the Department of Defense and will not exceed the order limitations clause, 52.216-19. When a requirement arises for items in Section B, a contemplation letter will be issued by the Procurement Contracting Officer (PCO) to the contractor. The contemplation letter will delineate the following: the CLIN, the Item and Quantity of Items, and the Delivery Schedule. Before issuance of the Delivery Order, the contractor shall respond in writing that they are able to meet the requirement therein. All delivery orders and/or modifications shall be purchased and executed only by the PCO at Army Contracting Command New Jersey (ACC-NJ).

H.2.0 Pricing Curve Approach for Production CLINs

a. Based upon the unit prices proposed for the specified quantities for the Production CLINs, corresponding pricing curve formulae will be automatically calculated, and the formulae will be reflected in the applicable cell in the Price Matrix. A separate pricing curve will be established for every interval between two specified quantities, based upon the unit prices proposed for those quantities, and the corresponding power curve formula will be utilized to calculate a unit price for the quantities within that interval. Offerors shall not change or edit the curve formulae provided in the Price Matrix. Any alteration of the formulae for the pricing curve may result in the Offerors proposal being rejected. The power curve formula will be $Y = Ax^b$, whereby:

- Y represents the unit price to be calculated,
- A represents the T-1 value, which is the theoretical unit price for the first unit based upon the respective curve formula,
- x represents the quantity to be ordered, and
- b represents the slope for the applicable quantity curve.

b. The resultant curve formulae will be incorporated into the awarded contract(s) and utilized on future delivery orders to calculate a unit price when quantities other than the specified quantity points are ordered.

c. In accordance with FAR 45.202(a), the Government shall consider any potentially unfair competitive advantage that may result from an Offeror using Government property already in the offerors or subcontractors possession. To eliminate the competitive advantage, a rental equivalent evaluation factor shall be added to each offer which is predicated on the use of Government property. Offerors shall propose the per unit value of Government property for each CLIN/specified quantity in accordance with FAR 52.245-9, Use and Charges in the Price Matrix attachment to the solicitation. Offerors shall provide detailed calculations demonstrating how the per unit rental value was derived and documentation supporting the rental charges in sufficient detail to permit verification of the rental charges and evaluation of the per unit rental value.

d. **Unbalanced Pricing.** Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly over or understated as indicated by the application of cost or price analysis techniques. The greatest risks associated with unbalanced pricing occur when (a) Startup work, mobilization, first articles, or first article testing are separate line items; (b) Base quantities and option quantities are separate line items; or (c) The evaluated price is the aggregate of estimated quantities to be ordered under separate line items of an indefinite-delivery contract. Offerors shall provide documentation, including data, calculations and supporting rationale, for any apparent unbalanced pricing which will be used to determine if the proposed prices are balanced.

H.3.0 Army Contract Writing System (ACWS) Transition Information for Offerors

a. The Army Contracting Enterprise (ACE) is in the process of deploying new solicitation and contract writing software to Army contracting offices worldwide. Known as the Army Contract Writing System (ACWS), this modern software suite will soon replace most existing Army contract writing systems, including the system used to create and release this Solicitation.

b. During this transition period, Offerors are hereby advised:

1)The Contracting Office may use any combination of contract writing systems to create and release documents related to this solicitation (e.g. solicitation amendments and awards, if any). Due to this:

i. This solicitation may contain different offer submission instructions than other solicitations released by the same Contracting Office (e.g. requiring offer submission via the PIEE Solicitation Module vs. e-mail). Offerors should review all offer submission instructions contained in the solicitation documents and direct any questions or concerns to the Contract Specialist or Contracting Officer.

ii. If the Contracting Office switches contract writing systems prior to award, documents you receive from the Contracting Officer or view on SAM.gov or other forums may appear noticeably different than the initial solicitation or previous solicitations or awards from the same Contracting Office. This is normal and expected.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 50 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

iii. A change between contract writing systems may cause important information concerning solicitation response (amendments) or accepted terms (awards) to take on different formatting or appear in different parts of later documents issued. Offerors shall review all documents carefully to locate this important information and direct any questions or concerns to the Contract Specialist or Contracting Officer.

2) The Government does not intend to use the transition between contract writing systems to effect any changes to solicitation or award terms and conditions without accompanying document narratives explicitly stating such changes are deliberate and desired. While the Contract Specialist and Contracting Officer will take care to minimize or eliminate any inadvertent changes when adapting to the new contract writing software, you, as the Offeror, may still be the first to spot such errors. Therefore, Offerors shall:

i. Notify the Contracting Officer immediately if any observed changes, removals, or additions affect your award eligibility, violate or alter existing quote/proposal terms, or could affect Contract performance post-award.

ii. Take special care to ensure all fill-in Clauses are populated and remain populated across documents received from the Contracting Office throughout the Solicitation and Award process.

iii. Contact the Contracting Officer listed on the first page of the solicitation or solicitation amendment for guidance if you notice or suspect any inadvertent change has occurred between document issuances.

3. The Contracting Officer will correct problems affecting award documents (if any) via bilateral modification, at no cost to the Contractor. Any such modification will reconcile the award with the latest version of this solicitation reflecting deliberate action by the Contracting Officer (e.g. the first issuance if no amendments, or the latest amendment with accompanying narratives), inclusive of any documented pre-award negotiations or accepted supplemental offer terms.

4. In the unlikely event a network disruption, contract writing system error, or financial system error threatens timely award of the requirement set forth in this solicitation, the Contracting Officer:

i. May elect to use alternative mechanisms to obligate funds and allow work or deliveries to legally begin to the benefit of, and with legal protection for, both parties.

ii. Will incorporate the latest version of this Solicitation into such mechanisms to serve as a framework for contract execution until any such system problems are resolved.

iii. Will ensure any action taken does not conflict with the stated offer evaluation and award methodology of this requirement.

iv. Will issue a complete, properly-formatted award accurately reflecting this requirement and all applicable terms and conditions once systems return to normal.

*** END OF NARRATIVE H0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 51 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

SECTION I - CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)	NOV/2021
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-2	SECURITY REQUIREMENTS	MAR/2021
I-11	52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN/2011
I-12	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS	JUN/2020
I-13	52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT/2018
I-14	52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG/2020
I-15	52.204-23	PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB AND OTHER COVERED ENTITIES (DEC 2023)	DEC/2023
I-16	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025)	JAN/2025
I-17	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS	OCT/2018
I-18	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS	NOV/2015
I-19	52.210-1	MARKET RESEARCH	NOV/2021
I-20	52.211-5	MATERIAL REQUIREMENTS	AUG/2000
I-21	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-22	52.215-8	ORDER OF PRECEDENCE--UNIFORM CONTRACT FORMAT	OCT/1997
I-23	52.215-14	INTEGRITY OF UNIT PRICES	NOV/2021
I-24	52.215-15	PENSION ADJUSTMENTS AND ASSET REVERSIONS	OCT/2010
I-25	52.215-18	REVERSION OR ADJUSTMENT OF PLANS FOR POSTRETIREMENT BENEFITS (PRB) OTHER THAN PENSIONS	JUL/2005
I-26	52.217-2	CANCELLATION UNDER MULTI-YEAR CONTRACTS	OCT/1997
I-27	52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025)	JAN/2025
I-28	52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025) -- ALTERNATE II (NOV 2016)	JAN/2025
I-29	52.219-9	SMALL BUSINESS SUBCONTRACTING PLAN (JAN 2025)	JAN/2025
I-30	52.219-16	LIQUIDATED DAMAGES--SUBCONTRACTING PLAN	SEP/2021
I-31	52.219-33	NONMANUFACTURER RULE	SEP/2021
I-32	52.222-3	CONVICT LABOR	JUN/2003
I-33	52.222-4	CONTRACT WORK HOURS AND SAFETY STANDARDS--OVERTIME COMPENSATION	MAY/2018
I-34	52.222-20	CONTRACTS FOR MATERIALS, SUPPLIES, ARTICLES, AND EQUIPMENT	JUN/2020
I-35	52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN/2020
I-36	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-37	52.222-50	COMBATING TRAFFICKING IN PERSONS	NOV/2021
I-38	52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025)	JAN/2025
I-39	52.223-23	SUSTAINABLE PRODUCTS AND SERVICES MAR 2025) (DEVIATION 2025-000004)	MAR/2025
I-40	52.224-1	PRIVACY ACT NOTIFICATION	APR/1984

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 52 of 107
	PIIN/SIIN	MOD/AMD	

W15QKN-25-R-0040

Name of Offeror or Contractor:

	Regulatory Cite	Title	Date
I-41	52.224-3	PRIVACY TRAINING	JAN/2017
I-42	52.225-13	RESTRICTIONS ON CERTAIN FOREIGN PURCHASES	FEB/2021
I-43	52.226-7	DRUG-FREE WORKPLACE (MAY 2024)	MAY/2024
I-44	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-45	52.227-1	AUTHORIZATION AND CONSENT	JUN/2020
I-46	52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN/2020
I-47	52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB/2013
I-48	52.229-4	FEDERAL, STATE, AND LOCAL TAXES (STATE AND LOCAL ADJUSTMENTS)	FEB/2013
I-49	52.232-1	PAYMENTS	APR/1984
I-50	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002
I-51	52.232-11	EXTRAS	APR/1984
I-52	52.232-17	INTEREST	MAY/2014
I-53	52.232-18	AVAILABILITY OF FUNDS	APR/1984
I-54	52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)	APR/1984
I-55	52.232-25	PROMPT PAYMENT	JAN/2017
I-56	52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER--SYSTEM FOR AWARD MANAGEMENT	OCT/2018
I-57	52.232-37	MULTIPLE PAYMENT ARRANGEMENTS	MAY/1999
I-58	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-59	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-60	52.233-1	DISPUTES	MAY/2014
I-61	52.233-3	PROTEST AFTER AWARD	AUG/1996
I-62	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT/2004
I-63	52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024)	NOV/2024
I-64	52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN/2017
I-65	52.242-13	BANKRUPTCY	JUL/1995
I-66	52.243-1	CHANGES--FIXED PRICE	AUG/1987
I-67	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-00003)	MAR/2025
I-68	52.247-63	PREFERENCE FOR U.S.-FLAG AIR CARRIERS (JAN 2025)	JAN/2025
I-69	52.248-1	VALUE ENGINEERING	JUN/2020
I-70	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE) (APR 2012) -- ALTERNATE III (SEP 1996)	SEP/1996
I-71	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-72	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-73	52.253-1	COMPUTER GENERATED FORMS	JAN/1991
I-74	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-75	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-RELATED FELONIES (JAN 2023)	JAN/2023
I-76	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-77	252.203-7004	DISPLAY OF HOTLINE POSTERS (JAN 2023)	JAN/2023
I-78	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-79	252.204-7002	PAYMENT FOR SUBLINE ITEMS NOT SEPARATELY PRICED	APR/2020
I-80	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-81	252.204-7006	BILLING INSTRUCTIONS--COST VOUCHERS (MAY 2023)	MAY/2023
I-82	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024
I-83	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-84	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-85	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-86	252.205-7000	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)	OCT/2024
I-87	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)	MAY/2019
I-88	252.216-7010	POSTAWARD DEBRIEFINGS FOR TASK ORDERS AND DELIVERY ORDERS (DEC 2022)	DEC/2022
I-89	252.219-7003	SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)--BASIC	DEC/2019
I-90	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 53 of 107
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

	Regulatory Cite	Title	Date
I-91	252.223-7002	SAFETY PRECAUTIONS FOR AMMUNITION AND EXPLOSIVES (NOV 2023)	NOV/2023
I-92	252.223-7003	CHANGE IN PLACE OF PERFORMANCE--AMMUNITION AND EXPLOSIVES	DEC/1991
I-93	252.223-7008	PROHIBITION OF HEXAVALENT CHROMIUM (JAN 2023)	JAN/2023
I-94	252.225-7001	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM--BASIC (FEB 2024)	FEB/2024
I-95	252.225-7002	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS	MAR/2022
I-96	252.225-7004	REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA-- SUBMISSION AFTER AWARD (JUL 2024)	JUL/2024
I-97	252.225-7007	PROHIBITION ON ACQUISITION OF CERTAIN ITEMS FROM COMMUNIST CHINESE MILITARY COMPANIES	DEC/2018
I-98	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022
I-99	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-100	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-101	252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China	AUG/2022
I-102	252.225-7058	POSTAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE'S REPUBLIC OF CHINA (JAN 2023)	JAN/2023
I-103	252.225-7060	PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR AUTONOMOUS REGION (JUN 2023)	JUN/2023
I-104	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-105	252.227-7013	RIGHTS IN TECHNICAL DATA--OTHER THAN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-106	252.227-7014	RIGHTS IN NONCOMMERCIAL COMPUTER SOFTWARE AND NONCOMMERCIAL COMPUTER SOFTWARE DOCUMENTATION(JAN 2025)	JAN/2025
I-107	252.227-7015	TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)	JAN/2025
I-108	252.227-7016	RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)	JAN/2023
I-109	252.227-7019	VALIDATION OF ASSERTED RESTRICTIONS?COMPUTER SOFTWARE (JAN 2025)	JAN/2025
I-110	252.227-7025	LIMITATIONS ON THE USE OR DISCLOSURE OF GOVERNMENT-FURNISHED INFORMATION MARKED WITH RESTRICTIVE LEGENDS (JAN 2025)	JAN/2025
I-111	252.227-7027	DEFERRED ORDERING OF TECHNICAL DATA OR COMPUTER SOFTWARE	APR/1988
I-112	252.227-7030	TECHNICAL DATA--WITHHOLDING OF PAYMENT	MAR/2000
I-113	252.227-7037	VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025)	JAN/2025
I-114	252.231-7000	SUPPLEMENTAL COST PRINCIPLES	DEC/1991
I-115	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-116	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-117	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-118	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-119	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-120	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)	OCT/2024
I-121	52.209-3	FIRST ARTICLE APPROVAL -- CONTRACTOR TESTING (SEP 1989) -- ALTERNATE I (JAN 1997)	JAN/1997

- (a) The Contractor shall test per specification unit(s) of Lot/Item 120mm Mortar Shell Bodies as specified in this contract. At least 15 calendar days before the beginning of first article tests, the Contractor shall notify the Contracting Officer, in writing, of the time and location of the testing so that the Government may witness the tests.
- (b) The Contractor shall submit the first article test report within 270 calendar days from the date of this contract to the Contracting Officer marked First Article Test Report: Contract No. ____, Lot/Item No. _____. Within 30 calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.
- (c) If the first article is disapproved, the Contractor, upon Government request, shall repeat any or all first article tests. After each request for additional tests, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall then conduct the tests and deliver another report to the Government under the terms and conditions and within the time specified by the Government. The Government shall take action on this

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 54 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

report within the time specified in paragraph (b) above. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule, or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article report on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, and if the approved first article is not consumed or destroyed in testing, the Contractor may deliver the approved first article as part of the contract quantity if it meets all contract requirements for acceptance.

(f) If the Government does not act within the time specified in paragraph (b) or (c) above, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

(g) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for

(1) progress payments, or

(2) termination settlements if the contract is terminated for the convenience of the Government.

(h) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the offeror/contractor and have been accepted by the Government. The offeror/contractor may request a waiver.

(i) The Contractor shall produce both the first article and the production quantity at the same facility.

(End of Clause)

I-122

52.209-4

FIRST ARTICLE APPROVAL -- GOVERNMENT TESTING

SEP/1989

(a) The Contractor shall deliver per specification unit(s) of Lot/Item 120mm Mortar Shell Bodies within 270 calendar days from the date of this contract to the Government at for first article tests. The shipping documentation shall contain this contract number and the Lot/Item identification. The characteristics that the first article must meet and the testing requirements are specified elsewhere in this contract.

(b) Within 30 calendar days after the Government receives the first article, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article. The notice of conditional approval or approval shall not relieve the Contractor from complying with all requirements of the specifications and all other terms and conditions of this contract. A notice of conditional approval shall state any further action required of the Contractor. A notice of disapproval shall cite reasons for the disapproval.

(c) If the first article is disapproved, the Contractor, upon Government request, shall submit an additional first article for testing. After each request, the Contractor shall make any necessary changes, modifications, or repairs to the first article or select another first article for testing. All costs related to these tests are to be borne by the Contractor, including any and all costs for additional tests following a disapproval. The Contractor shall furnish any additional first article to the Government under the terms and conditions and within the time specified by the Government. The Government shall act on this first article within the time limit specified in paragraph (b) of this clause. The Government reserves the right to require an equitable adjustment of the contract price for any extension of the delivery schedule or for any additional costs to the Government related to these tests.

(d) If the Contractor fails to deliver any first article on time, or the Contracting Officer disapproves any first article, the Contractor shall be deemed to have failed to make delivery within the meaning of the Default clause of this contract.

(e) Unless otherwise provided in the contract, the Contractor --

(1) May deliver the approved first article as a part of the contract quantity, provided it meets all contract requirements for acceptance and was not consumed or destroyed in testing; and

(2) Shall remove and dispose of any first article from the Government test facility at the Contractors expense.

(f) If the Government does not act within the time specified in paragraph (b) or (c) of this clause, the Contracting Officer shall, upon timely written request from the Contractor, equitably adjust under the Changes clause of this contract the delivery or performance dates and/or the contract price, and any other contractual term affected by the delay.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 55 of 107
---	---	--

Name of Offeror or Contractor:

(g) The Contractor is responsible for providing operating and maintenance instructions, spare parts support, and repair of the first article during any first article test.

(h) Before first article approval, the acquisition of materials or components for, or the commencement of production of, the balance of the contract quantity is at the sole risk of the Contractor. Before first article approval, the costs thereof shall not be allocable to this contract for

(1) progress payments, or

(2) termination settlements if the contract is terminated for the convenience of the Government.

(i) The Government may waive the requirement for first article approval test where supplies identical or similar to those called for in the schedule have been previously furnished by the Offeror/Contractor and have been accepted by the Government. The Offeror/Contractor may request a waiver.

(End of Clause)

I-123 52.216-18 ORDERING

AUG/2020

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued for five years from the date of contract award.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

I-124 52.216-19 ORDER LIMITATIONS

OCT/1995

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than \$10,000, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of \$18.7M;

(2) Any order for a combination of items in excess of \$40M; or

(3) A series of orders from the same ordering office within 5 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 7 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 56 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

may acquire the supplies or services from another source.

(End of Clause)

I-125 52.216-22 INDEFINITE QUANTITY OCT/1995

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the maximum. The Government shall order at least the quantity of supplies or services designated in the Schedule as the minimum.

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after 36 months after issuance of the last Delivery Order.

(End of Clause)

I-126 52.216-32 TASK-ORDER AND DELIVERY-ORDER OMBUDSMAN SEP/2019

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

ACC-New Jersey Task and Delivery Order Ombudsman
Phipps Road, Bldg. 1610
Picatinny Arsenal, NJ 07806-5000

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

I-127 52.222-35 EQUAL OPPORTUNITY FOR VETERANS (JUN 2020) -- ALTERNATE I (JUL 2014) JUL/2014

(a) Definitions. As used in this clause--

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 57 of 107
Name of Offeror or Contractor:		

(End of clause)

I-128

52.243-7

NOTIFICATION OF CHANGES

JAN/2017

(a) Definitions. "Contracting Officer," as used in this clause, does not include any representative of the Contracting Officer.

"Specifically Authorized Representative (SAR)," as used in this clause, means any person the Contracting Officer has so designated by written notice (a copy of which shall be provided to the Contractor) which shall refer to this subparagraph and shall be issued to the designated representative before the SAR exercises such authority.

(b) Notice. The primary purpose of this clause is to obtain prompt reporting of Government conduct that the Contractor considers to constitute a change to this contract. Except for changes identified as such in writing and signed by the Contracting Officer, the Contractor shall notify the Administrative Contracting Officer in writing promptly, within (to be negotiated) calendar days from the date that the Contractor identifies any Government conduct (including actions, inactions, and written or oral communications) that the Contractor regards as a change to the contract terms and conditions. On the basis of the most accurate information available to the Contractor, the notice shall state --

- (1) The date, nature, and circumstances of the conduct regarded as a change;
- (2) The name, function, and activity of each Government individual and Contractor official or employee involved in or knowledgeable about such conduct;
- (3) The identification of any documents and the substance of any oral communication involved in such conduct;
- (4) In the instance of alleged acceleration of scheduled performance or delivery, the basis upon which it arose;
- (5) The particular elements of contract performance for which the Contractor may seek an equitable adjustment under this clause, including --
 - (i) What line items have been or may be affected by the alleged change;
 - (ii) What labor or materials or both have been or may be added, deleted, or wasted by the alleged change;
 - (iii) To the extent practicable, what delay and disruption in the manner and sequence of performance and effect on continued performance have been or may be caused by the alleged change;
 - (iv) What adjustments to contract price, delivery schedule, and other provisions affected by the alleged change are estimated; and
- (6) The Contractor's estimate of the time by which the Government must respond to the Contractor's notice to minimize cost, delay or disruption of performance.

(c) Continued performance. Following submission of the notice required by paragraph (b) of this clause, the Contractor shall diligently continue performance of this contract to the maximum extent possible in accordance with its terms and conditions as construed by the Contractor, unless the notice reports a direction of the Contracting Officer or a communication from a SAR of the Contracting Officer, in either of which events the Contractor shall continue performance; provided, however, that if the Contractor regards the direction or communication as a change as described in paragraph (b) of this clause, notice shall be given in the manner provided. All directions, communications, interpretations, orders and similar actions of the SAR shall be reduced to writing promptly and copies furnished to the Contractor and to the Contracting Officer. The Contracting Officer shall promptly countermand any action which exceeds the authority of the SAR.

(d) Government response. The Contracting Officer shall promptly, within (to be negotiated) calendar days after receipt of notice, respond to the notice in writing. In responding, the Contracting Officer shall either --

- (1) Confirm that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance;
- (2) Countermand any communication regarded as a change;
- (3) Deny that the conduct of which the Contractor gave notice constitutes a change and when necessary direct the mode of further performance; or
- (4) In the event the Contractor's notice information is inadequate to make a decision under subparagraphs (d)(1), (2), or (3) of this

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 58 of 107 MOD/AMD
---------------------------	--	---

Name of Offeror or Contractor:

clause, advise the Contractor what additional information is required, and establish the date by which it should be furnished and the date thereafter by which the Government will respond.

(e) Equitable adjustments.

(1) If the Contracting Officer confirms that Government conduct effected a change as alleged by the Contractor, and the conduct causes an increase or decrease in the Contractor's cost of, or the time required for, performance of any part of the work under this contract, whether changed or not changed by such conduct, an equitable adjustment shall be made --

(i) In the contract price or delivery schedule or both; and

(ii) In such other provisions of the contract as may be affected.

(2) The contract shall be modified in writing accordingly. In the case of drawings, designs or specifications which are defective and for which the Government is responsible, the equitable adjustment shall include the cost and time extension for delay reasonably incurred by the Contractor in attempting to comply with the defective drawings, designs or specifications before the Contractor identified, or reasonably should have identified, such defect. When the cost of property made obsolete or excess as a result of a change confirmed by the Contracting Officer under this clause is included in the equitable adjustment, the Contracting Officer shall have the right to prescribe the manner of disposition of the property. The equitable adjustment shall not include increased costs or time extensions for delay resulting from the Contractor's failure to provide notice or to continue performance as provided, respectively, in paragraphs (b) and (c) of this clause.

NOTE: The phrases "contract price" and "cost" wherever they appear in the clause, may be appropriately modified to apply to cost-reimbursement or incentive contracts, or to combinations thereof.

(End of Clause)

I-129

52.246-18

WARRANTY OF SUPPLIES OF A COMPLEX NATURE

MAY/2001

(a) Definitions. As used in this clause--

Acceptance means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services rendered, as partial or complete performance of the contract.

Supplies means the end items furnished by the Contractor and related services required under this contract. The word does not include data.

(b) Contractors obligations.

(1) The Contractor warrants that for 1095 days all supplies furnished under this contract will be free from defects in material and workmanship and will conform with all requirements of this contract; provided, however, that with respect to Government-furnished property, the Contractors warranty shall extend only to its proper installation, unless the Contractor performs some modification or other work on the property, in which case the Contractors warranty shall extend to the modification or other work.

(2) Any supplies or parts thereof corrected or furnished in replacement shall be subject to the conditions of this clause to the same extent as supplies initially delivered. This warranty shall be equal in duration to that set forth in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(3) The Contractor shall not be obligated to correct or replace supplies if the facilities, tooling, drawings, or other equipment or supplies necessary to accomplish the correction or replacement have been made unavailable to the Contractor by action of the Government. In the event that correction or replacement has been directed, the Contractor shall promptly notify the Contracting Officer, in writing, of the nonavailability.

(4) The Contractor shall also prepare and furnish to the Government data and reports applicable to any correction required (including revision and updating of all affected data called for under this contract) at no increase in the contract price.

(5) When supplies are returned to the Contractor, the Contractor shall bear the transportation costs from the place of delivery specified in the contract (irrespective of the f.o.b. point or the point of acceptance) to the Contractors plant and return.

(6) All implied warranties of merchantability and fitness for a particular purpose are excluded from any obligation contained in this contract.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 59 of 107
Name of Offeror or Contractor:		

(c) Remedies available to the Government.

(1) In the event of a breach of the Contractors warranty in paragraph (b)(1) of this clause, the Government may, at no increase in contract price --

(i) Require the Contractor, at the place of delivery specified in the contract (irrespective of the f.o.b. point or the point of acceptance) or at the Contractors plant, to repair or replace, at the Contractors election, defective or nonconforming supplies; or

(ii) Require the Contractor to furnish at the Contractors plant the materials or parts and installation instructions required to successfully accomplish the correction.

(2) If the Contracting Officer does not require correction or replacement of defective or nonconforming supplies or the Contractor is not obligated to correct or replace under paragraph (b)(3) of this clause, the Government shall be entitled to an equitable reduction in the contract price.

(3) The Contracting Officer shall notify the Contractor in writing of any breach of the warranty in paragraph (b) of this clause within 45 days after the discovery of the defect. The Contractor shall submit to the Contracting Officer a written recommendation within 30 days as to the corrective action required to remedy the breach. After the notice of breach, but not later than 30 days after receipt of the Contractors recommendation for corrective action, the Contracting Officer may, in writing, direct correction or replacement as in paragraph (c)(1) of this clause, and the Contractor shall, notwithstanding any disagreement regarding the existence of a breach of warranty, comply with this direction. If it is later determined that the Contractor did not breach the warranty in paragraph (b)(1) of this clause, the contract price will be equitably adjusted.

(4) If supplies are corrected or replaced, the period for notification of a breach of the Contractors warranty in paragraph (c)(3) of this clause shall be 45 days from the furnishing or return by the Contractor to the Government of the corrected or replaced supplies or parts thereof, or, if correction or replacement is effected by the Contractor at a Government or other activity, for 45 days thereafter.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of the contract.

(End of Clause)

I-130 52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT NOV/2021
(a) Definitions. As used in this clause--

"Agent" means any individual, including a director, an officer, an employee, or an independent Contractor, authorized to act on behalf of the organization.

"Full cooperation"--

(1) Means disclosure to the Government of the information sufficient for law enforcement to identify the nature and extent of the offense and the individuals responsible for the conduct. It includes providing timely and complete response to Government auditors and investigators' request for documents and access to employees with information;

(2) Does not foreclose any Contractor rights arising in law, the FAR, or the terms of the contract. It does not require--

(i) A Contractor to waive its attorney-client privilege or the protections afforded by the attorney work product doctrine; or

(ii) Any officer, director, owner, or employee of the Contractor, including a sole proprietor, to waive his or her attorney client privilege or Fifth Amendment rights; and

(3) Does not restrict a Contractor from--

(i) Conducting an internal investigation; or

(ii) Defending a proceeding or dispute arising under the contract or related to a potential or disclosed violation.

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

"Subcontract" means any contract entered into by a subcontractor to furnish supplies or services for performance of a prime contract or a subcontract.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 60 of 107 MOD/AMD
Name of Offeror or Contractor:		

"Subcontractor" means any supplier, distributor, vendor, or firm that furnished supplies or services to or for a prime contractor or another subcontractor.

"United States," means the 50 States, the District of Columbia, and outlying areas.

(b) Code of business ethics and conduct.

(1) Within 30 days after contract award, unless the Contracting Officer establishes a longer time period, the Contractor shall--

- (i) Have a written code of business ethics and conduct; and
- (ii) Make a copy of the code available to each employee engaged in performance of the contract.

(2) The Contractor shall--

- (i) Exercise due diligence to prevent and detect criminal conduct; and
- (ii) Otherwise promote an organizational culture that encourages ethical conduct and a commitment to compliance with the law.

(3)(i) The Contractor shall timely disclose, in writing, to the agency Office of the Inspector General (OIG), with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed--

- (A) A violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code; or
- (B) A violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(ii) The Government, to the extent permitted by law and regulation, will safeguard and treat information obtained pursuant to the Contractors disclosure as confidential where the information has been marked confidential or proprietary by the company. To the extent permitted by law and regulation, such information will not be released by the Government to the public pursuant to a Freedom of Information Act request, 5 U.S.C. Section 552, without prior notification to the Contractor. The Government may transfer documents provided by the Contractor to any department or agency within the Executive Branch if the information relates to matters within the organizations jurisdiction.

(iii) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the Contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract.

(c) Business ethics awareness and compliance program and internal control system. This paragraph (c) does not apply if the Contractor has represented itself as a small business concern pursuant to the award of this contract or if this contract is for the acquisition of a commercial product or commercial service as defined at FAR 2.101. The Contractor shall establish the following within 90 days after contract award, unless the Contracting Officer establishes a longer time period:

(1) An ongoing business ethics awareness and compliance program.

(i) This program shall include reasonable steps to communicate periodically and in a practical manner the Contractors standards and procedures and other aspects of the Contractors business ethics awareness and compliance program and internal control system, by conducting effective training programs and otherwise disseminating information appropriate to an individuals respective roles and responsibilities.

(ii) The training conducted under this program shall be provided to the Contractors principals and employees, and as appropriate, the Contractors agents and subcontractors.

(2) An internal control system.

(i) The Contractors internal control system shall--

- (A) Establish standards and procedures to facilitate timely discovery of improper conduct in connection with Government contracts; and
- (B) Ensure corrective measures are promptly instituted and carried out.

(ii) At a minimum, the Contractors internal control system shall provide for the following:

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 61 of 107
Name of Offeror or Contractor:		

(A) Assignment of responsibility at a sufficiently high level and adequate resources to ensure effectiveness of the business ethics awareness and compliance program and internal control system.

(B) Reasonable efforts not to include an individual as a principal, whom due diligence would have exposed as having engaged in conduct that is in conflict with the Contractors code of business ethics and conduct.

(C) Periodic reviews of company business practices, procedures, policies, and internal controls for compliance with the Contractors code of business ethics and conduct and the special requirements of Government contracting, including--

- (1) Monitoring and auditing to detect criminal conduct;
- (2) Periodic evaluation of the effectiveness of the business ethics awareness and compliance program and internal control system, especially if criminal conduct has been detected; and
- (3) Periodic assessment of the risk of criminal conduct, with appropriate steps to design, implement, or modify the business ethics awareness and compliance program and the internal control system as necessary to reduce the risk of criminal conduct identified through this process.

(D) An internal reporting mechanism, such as a hotline, which allows for anonymity or confidentiality, by which employees may report suspected instances of improper conduct, and instructions that encourage employees to make such reports.

(E) Disciplinary action for improper conduct or for failing to take reasonable steps to prevent or detect improper conduct.

(F) Timely disclosure, in writing, to the agency OIG, with a copy to the Contracting Officer, whenever, in connection with the award, performance, or closeout of any Government contract performed by the Contractor or a subcontract thereunder, the Contractor has credible evidence that a principal, employee, agent, or subcontractor of the Contractor has committed a violation of Federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 U.S.C. or a violation of the civil False Claims Act (31 U.S.C. 3729-3733).

(1) If a violation relates to more than one Government contract, the Contractor may make the disclosure to the agency OIG and Contracting Officer responsible for the largest dollar value contract impacted by the violation.

(2) If the violation relates to an order against a Governmentwide acquisition contract, a multi-agency contract, a multiple-award schedule contract such as the Federal Supply Schedule, or any other procurement instrument intended for use by multiple agencies, the contractor shall notify the OIG of the ordering agency and the IG of the agency responsible for the basic contract, and the respective agencies contracting officers.

(3) The disclosure requirement for an individual contract continues until at least 3 years after final payment on the contract.

(4) The Government will safeguard such disclosures in accordance with paragraph (b)(3)(ii) of this clause.

(G) Full cooperation with any Government agencies responsible for audits, investigations, or corrective actions.

(d) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (d), in subcontracts that exceed the threshold specified in FAR 3.1004(a) on the date of subcontract award and a performance period of more than 120 days.

(2) In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(End of clause)

(a) This contract and employees working on this contract will be subject to the whistleblower rights and remedies established at 41 U.S.C. 4712 and Federal Acquisition Regulation (FAR) 3.900 through 3.905.

(b) The Contractor shall inform its employees in writing, in the predominant language of the workforce, of employee whistleblower

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 62 of 107 MOD/AMD
---------------------------	--	---

Name of Offeror or Contractor:

rights and protections under 41 U.S.C. 4712, as described in FAR 3.900 through 3.905.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts.

(End of clause)

I-132 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014
The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I-133 52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS NOV/2021
(a) Definitions. As used in this clause--

"Covered contractor information system" means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

"Federal contract information" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public Web sites) or simple transactional information, such as necessary to process payments.

"Information" means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

"Information system" means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

"Safeguarding" means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

- (i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).
- (ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.
- (iii) Verify and control/limit connections to and use of external information systems.
- (iv) Control information posted or processed on publicly accessible information systems.
- (v) Identify information system users, processes acting on behalf of users, or devices.
- (vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.
- (vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.
- (viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.
- (ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.
- (x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 63 of 107
---	---	--

Name of Offeror or Contractor:

information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

I-134	52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT	NOV/2021
-------	-----------	--	----------

(a) Definitions. As used in this clause--

"Backhaul" means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

"Covered foreign country" means The Peoples Republic of China.

"Covered telecommunications equipment or services" means--

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

"Critical technology" means--

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled-

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 64 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

"Interconnection arrangements" means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connection of a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

"Reasonable inquiry" means an inquiry designed to uncover any information in the entity's possession about the identity of the producer or provider of covered telecommunications equipment or services used by the entity that excludes the need to include an internal or third-party audit.

"Roaming" means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

"Substantial or essential component" means any component necessary for the proper function or performance of a piece of equipment, system, or service.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. The Contractor is prohibited from providing to the Government any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract, or extending or renewing a contract, with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless an exception at paragraph (c) of this clause applies or the covered telecommunication equipment or services are covered by a waiver described in FAR 4.2104. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract.

(c) Exceptions. This clause does not prohibit contractors from providing--

(1) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(2) Telecommunications equipment that cannot route or redirect user data traffic or permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(d) Reporting requirement. (1) In the event the Contractor identifies covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system, during contract performance, or the Contractor is notified of such by a subcontractor at any tier or by any other source, the Contractor shall report the information in paragraph (d)(2) of this clause to the Contracting Officer, unless elsewhere in this contract are established procedures for reporting the information; in the case of the Department of Defense, the Contractor shall report to the website at <https://dibnet.dod.mil> . For indefinite delivery contracts, the Contractor shall report to the Contracting Officer for the indefinite delivery contract and the Contracting Officer(s) for any affected order or, in the case of the Department of Defense, identify both the indefinite delivery contract and any affected orders in the report provided at <https://dibnet.dod.mil> .

(2) The Contractor shall report the following information pursuant to paragraph (d)(1) of this clause:

(i) Within one business day from the date of such identification or notification: The contract number; the order number(s), if applicable; supplier name; supplier unique entity identifier (if known); supplier Commercial and Government Entity (CAGE) code (if known); brand; model number (original equipment manufacturer number, manufacturer part number, or wholesaler number); item description; and any readily available information about mitigation actions undertaken or recommended.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 65 of 107
----------------------------------	---	------------------------------

Name of Offeror or Contractor:

(ii) Within 10 business days of submitting the information in paragraph (d)(2)(i) of this clause: Any further available information about mitigation actions undertaken or recommended. In addition, the Contractor shall describe the efforts it undertook to prevent use or submission of covered telecommunications equipment or services, and any additional efforts that will be incorporated to prevent future use or submission of covered telecommunications equipment or services.

(e) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (b)(2), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-135 52.204-27 Prohibition on a ByteDance Covered Application (Jun 2023) JUN/2023
(a) Definitions. As used in this clause

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) Prohibition. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, No TikTok on Government Devices Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractors employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

I-136 52.215-11 PRICE REDUCTION FOR DEFECTIVE CERTIFIED COST OR PRICING DATA-- OCT/2021
MODIFICATIONS (DEVIATION 2022-00001)

(a) This clause shall become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification, except that this clause does not apply to any modification if an exception under Federal Acquisition Regulation (FAR) 15.403-1(b) applies.

(b) If any price, including profit or fee, negotiated in connection with any modification under this clause, or any cost reimbursable under this contract, was increased by any significant amount because--

(1) The Contractor or a subcontractor furnished certified cost or pricing data that were not complete, accurate, and current as certified in its Certificate of Current Cost or Pricing Data;

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 66 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

(2) A subcontractor or prospective subcontractor furnished the Contractor certified cost or pricing data that were not complete, accurate, and current as certified in the Contractors Certificate of Current Cost or Pricing Data; or

(3) Any of these parties furnished data of any description that were not accurate, the price or cost shall be reduced accordingly and the contract shall be modified to reflect the reduction. This right to a price reduction is limited to that resulting from defects in data relating to modifications for which this clause becomes operative under paragraph (a) of this clause.

(c) Any reduction in the contract price under paragraph (b) of this clause due to defective data from a prospective subcontractor that was not subsequently awarded the subcontract shall be limited to the amount, plus applicable overhead and profit markup, by which--

(1) The actual subcontract price; or

(2) The actual cost to the Contractor, if there was no subcontract awarded, was less than the prospective subcontract cost estimate submitted by the Contractor; provided, that the actual subcontract price was not itself affected by defective certified cost or pricing data.

(d)(1) If the Contracting Officer determines under paragraph (b) of this clause that a price or cost reduction should be made, the Contractor agrees not to raise the following matters as a defense:

(i) The Contractor or subcontractor was a sole source supplier or otherwise was in a superior bargaining position and thus the price of the contract would not have been modified even if accurate, complete, and current certified cost or pricing data had been submitted.

(ii) The Contracting Officer should have known that the certified cost or pricing data in issue were defective even though the Contractor or subcontractor took no affirmative action to bring the character of the data to the attention of the Contracting Officer.

(iii) The contract was based on an agreement about the total cost of the contract and there was no agreement about the cost of each item procured under the contract.

(iv) The Contractor or subcontractor did not submit a Certificate of Current Cost or Pricing Data.

(2)(i) Except as prohibited by subdivision (d)(2)(ii) of this clause, an offset in an amount determined appropriate by the Contracting Officer based upon the facts shall be allowed against the amount of a contract price reduction if--

(A) The Contractor certifies to the Contracting Officer that, to the best of the Contractors knowledge and belief, the Contractor is entitled to the offset in the amount requested; and

(B) The Contractor proves that the certified cost or pricing data were available before the as of date specified on its Certificate of Current Cost or Pricing Data, and that the data were not submitted before such date.

(ii) An offset shall not be allowed if--

(A) The understated data were known by the Contractor to be understated before the as of date specified on its Certificate of Current Cost or Pricing Data; or

(B) The Government proves that the facts demonstrate that the contract price would not have increased in the amount to be offset even if the available data had been submitted before the as of date specified on its Certificate of Current Cost or Pricing Data.

(e) If any reduction in the contract price under this clause reduces the price of items for which payment was made prior to the date of the modification reflecting the price reduction, the Contractor shall be liable to and shall pay the United States at the time such overpayment is repaid

(1) Interest compounded daily, as required by 26 U.S.C. 6622, on the amount of such overpayment to be computed from the date(s) of overpayment to the Contractor to the date the Government is repaid by the Contractor at the applicable underpayment rate effective for each quarter prescribed by the Secretary of the Treasury under 26 U.S.C. 6621(a)(2); and

(2) A penalty equal to the amount of the overpayment, if the Contractor or subcontractor knowingly submitted certified cost or pricing data that were incomplete, inaccurate, or noncurrent.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 67 of 107
Name of Offeror or Contractor:		

(1) Become operative only for any modification to this contract involving a pricing adjustment expected to exceed \$2 million on the date of execution of the modification; and

(2) Be limited to such modifications.

(b) Before awarding any subcontract expected to exceed \$2 million, on the date of agreement on price or the date of award, whichever is later; or before pricing any subcontract modification involving a pricing adjustment expected to exceed \$2 million, the Contractor shall require the subcontractor to submit certified cost or pricing data (actually or by specific identification in writing), in accordance with Federal Acquisition Regulation (FAR) 15.408, Table 15-2 (to include any information reasonably required to explain the subcontractors estimating process such as the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data, and the nature and amount of any contingencies included in the price), unless an exception under FAR 15.403-1(b) applies. If the \$2 million threshold for submission of certified cost or pricing data is adjusted for inflation as set forth in FAR 1.109(a), then pursuant to FAR 1.109(d) the changed threshold applies throughout the remaining term of the contract, unless there is a subsequent threshold adjustment.

(c) The Contractor shall require the subcontractor to certify in substantially the form prescribed in FAR 15.406-2 that, to the best of its knowledge and belief, the data submitted under paragraph (b) of this clause were accurate, complete, and current as of the date of agreement on the negotiated price of the subcontract or subcontract modification.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in each subcontract that exceeds \$2 million on the date of agreement on price or the date of award, whichever is later.

(End of clause)

I-138 52.215-19 NOTIFICATION OF OWNERSHIP CHANGES OCT/1997

(a) The Contractor shall make the following notifications in writing:

(1) When the Contractor becomes aware that a change in its ownership has occurred, or is certain to occur, that could result in changes in the valuation of its capitalized assets in the accounting records, the Contractor shall notify the Administrative Contracting Officer (ACO) within 30 days.

(2) The Contractor shall also notify the ACO within 30 days whenever changes to asset valuations or any other cost changes have occurred or are certain to occur as a result of a change in ownership.

(b) The Contractor shall --

(1) Maintain current, accurate, and complete inventory records of assets and their costs;

(2) Provide the ACO or designated representative ready access to the records upon request;

(3) Ensure that all individual and grouped assets, their capitalized values, accumulated depreciation or amortization, and remaining useful lives are identified accurately before and after each of the Contractors ownership changes; and

(4) Retain and continue to maintain depreciation and amortization schedules based on the asset records maintained before each Contractor ownership change.

(c) The Contractor shall include the substance of this clause in all subcontracts under this contract that meet the applicability requirement of FAR 15.408(k).

(End of Clause)

I-139 52.219-28 POST-AWARD SMALL BUSINESS PROGRAM REPRESENTATION (JAN 2025) JAN/2025

(a) Definitions. As used in this clause

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 68 of 107
Name of Offeror or Contractor:		

Small business concern

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)

(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);

(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);

(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and

(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards> .

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraph (b) and

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 69 of 107
--	---	---

Name of Offeror or Contractor:

(c) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

- (1) The Contractor represents that it __ is, __ is not a small business concern under NAICS Code ____ assigned to contract number ____.
- (2) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.
- (3) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a women-owned small business concern.
- (4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it __ is, __ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __ .]
- (6) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that it __ is, __ is not a veteran-owned small business concern.
- (7) [Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.] The Contractor represents that it __ is, __ is not a service-disabled veteran-owned small business concern.
- (8) Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program. The Contractor represents that it __ is, __ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: __.]
- (9) [Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.] The Contractor represents that
 - (i) It __ is, __ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and
 - (ii) It __ is, __ is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

[Contractor to sign and date and insert authorized signer's name and title._____]

(End of clause)

- (1) Israel, and the anticipated value of the acquisition is \$50,000 or more;
- (2) Mexico, and the anticipated value of the acquisition is \$102,280 or more; or

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 70 of 107 MOD/AMD
Name of Offeror or Contractor:		

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is \$174,000 or more.

(b) Cooperation with Authorities. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) Violations. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring official may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

I-141 52.222-35 EQUAL OPPORTUNITY FOR VETERANS
(a) Definitions. As used in this clause--

JUN/2020

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR) 22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-142 52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES

JUN/2020

(a) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-741.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified individuals on the basis of disability, and requires affirmative action by the Contractor to employ and advance in employment qualified individuals with disabilities.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 71 of 107
Name of Offeror or Contractor:		

(b) Subcontracts. The Contractor shall include the terms of this clause in every subcontract or purchase order in excess of the threshold specified in Federal Acquisition Regulation (FAR) 22.1408(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary, so that such provisions will be binding upon each subcontractor or vendor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs of the U.S. Department of Labor, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

I-143 52.252-2 CLAUSES INCORPORATED BY REFERENCE FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

I-144 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES NOV/2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any DoD Federal Acquisition Regulation Supplement (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

I-145 252.225-7972 PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS (DEVIATION 2024-00014) AUG/2024

(a) Definition. As used in this clause Covered foreign country means any of the following:

- (1) The Peoples Republic of China.
- (2) The Russian Federation.
- (3) The Islamic Republic of Iran.
- (4) The Democratic Peoples Republic of Korea.

(b) Prohibition. In accordance with section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 and section 817 of the NDAA for FY 2023, the Contractor shall not

(1) Provide or use an unmanned aircraft system (UAS), or any related services or equipment, that

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Provide or use a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, be an entity that operates equipment, as determined by the Secretary of Defense, from

(i) Da-Jiang Innovations, or any subsidiary or affiliate of Da-Jiang Innovations;

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 72 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce (<https://www.trade.gov/consolidated-screening-list>); or

(iii) Any entity that produces or provides unmanned aircraft systems and

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts or other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(End of clause)

DRAFT

Name of Offeror or Contractor:

SECTION J - LIST OF ATTACHMENTS

List of Addenda	Title	Date	Number of Pages	Transmitted By
Exhibit A	CONTRACT DATA REQUIREMENTS LIST A001-A030	05-MAR-2025	030	DATA
Attachment 0001	CONTRACT QUALITY REQUIREMENTS	10-APR-2025	025	DATA
Attachment 0002	PRICE MATRIX	20-MAR-2025		DATA
Attachment 0003	TECHNICAL DATA PACKAGE (TDP)			DATA
Attachment 0004	NON-DISCLOSURE AGREEMENT	10-APR-2025	003	EMAIL
Attachment 0005	FDDAC 1350 TECHNICAL DATA REQUEST QUESTIONNAIRE	10-APR-2025	002	EMAIL
Attachment 0006	DD FORM 2345 MILITARY TECHNICAL DATA AGREEMENT	10-APR-2025	002	EMAIL
Attachment 0007	CERTIFICATE OF DESTRUCTION	10-APR-2025	001	EMAIL
Attachment 0008	FORM 3002 CLEARANCE OF TECHNICAL INFORMATION	10-APR-2024	002	EMAIL
Attachment 0009	LLL FORM	26-OCT-2023	002	DATA
Attachment 0010	PAST PERFORMANCE QUESTIONNAIRE	26-OCT-2023	006	DATA

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 74 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	Regulatory Cite	Title	Date
K-1	52.201-1	Acquisition 360: Voluntary Survey (Sep 2023)	SEP/2023
K-2	52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP/2007
K-3	52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures (Dec 2023)	DEC/2023
K-4	252.203-7005	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)	SEP/2022
K-5	252.204-7008	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS	OCT/2016
K-6	252.225-7031	SECONDARY ARAB BOYCOTT OF ISRAEL	JUN/2005
K-7	252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY/2022
K-8	252.227-7017	IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2025)	JAN/2025
K-9	252.227-7028	TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT	JUN/1995
K-10	52.204-8	ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2025) (DEVIATION 2025--00003) and (DEVIATION 2025-000004)	MAR/2025

- (a)
- (1) The North American Industry Classification System (NAICS) code for this acquisition is 332993.
- (2) The small business size standard is 1,500 employees.
- (3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition
- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

- (b)
- (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.
- (2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (d) applies.

☐ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 75 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

- (i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless
 - (A) The acquisition is to be made under the simplified acquisition procedures in part 13;
 - (B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or
 - (C) The solicitation is for utility services for which rates are set by law or regulation.
- (ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.
- (iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.
- (iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.
- (v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-
 - (A) Are not set aside for small business concerns;
 - (B) Exceed the simplified acquisition threshold; and
 - (C) Are for contracts that will be performed in the United States or its outlying areas.
- (vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.
- (vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.
- (viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.
- (ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.
- (x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.
- (xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.
- (xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
 - (A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.
 - (B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.
 - (C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.
- (xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).
- (xiv) [Reserved].
- (xv) [Reserved].

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 76 of 107
---	--	--

Name of Offeror or Contractor:

(xvi) 52.222-38, Compliance with Veterans Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☒ (i) 52.204-17, Ownership or Control of Offeror.

☒ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA-Designated Products (Alternate I only).

☐ (vii) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 77 of 107
---	--	--

Name of Offeror or Contractor:

(including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change
_____	_____	_____	_____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

Alternate I (Mar 2023). As prescribed in 4.1202(a) , substitute the following paragraph (a) for paragraph (a) of the basic provision:

(a)(1) The North American Industry Classification System (NAICS) codes and corresponding size standards for this acquisition are as follows; the categories or portions these NAICS codes are assigned to are specified elsewhere in the solicitation:

NAICS Code	Size standard
_____	_____
_____	_____
_____	_____

[Contracting Officer to insert NAICS codes and size standards].

(2) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce, (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(End of provision)

K-11 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATION (SEP 2021) -- ALTERNATE I OCT/2022
(SEP 2015)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern--

(1) Means a small business concern--

(i) Small business concern-- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 78 of 107
----------------------------------	--	------------------------------

Name of Offeror or Contractor:

(2) Service-disabled veteran means a veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding \$750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is 332993.

(2) The small business size standard is 1,500.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations. (1) The offeror represents as part of its offer that--

(i) It [square] is, [square] is not a small business concern; or

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 79 of 107
---	---	--

Name of Offeror or Contractor:

(ii) It [square] is, [square] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture:___.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is, [] is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [] is, [] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(3) of this provision.] The offeror represents as part of its offer that--

(5) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a women-owned small business concern eligible under the WOSB Program in (c)(4) of this provision.] The offeror represents as part of its offer that--

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [] is, [] is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that--

(i) It [square] is, [square] is not a service-disabled veteran-owned small business concern; or
(ii) It [square] is, [square] is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture:___.] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ? is, ? is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200;) or

(ii) It [square] is, [square] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(9) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

(d) Under 15 U.S.C. 645(d), any person who misrepresents a firms status as a small, HUBZone small, small disadvantaged, or women-owned small business concern in order to obtain a contract to be awarded under the preference programs established pursuant to section 8(a), 8(d), 9, or 15 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall --

(1) Be punished by imposition of fine, imprisonment, or both;

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 80 of 107
----------------------------------	--	------------------------------

Name of Offeror or Contractor:

- (2) Be subject to administrative remedies, including suspension and debarment; and
 - (3) Be ineligible for participation in programs conducted under the authority of the Act.
- (End of Provision)

K-12

52.219-1

SMALL BUSINESS PROGRAM REPRESENTATION (FEB 2024)

FEB/2024

(a) Definitions. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

- (1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).
- (3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.
- (2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

- (1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-
 - (i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104)

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 81 of 107
---	---	--

Name of Offeror or Contractor:

individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 332993.

(2) The small business size standard is 1,500 employees.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that

(i) it ? is, ? is not a small business concern; or

(ii) It ? is, ? is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and

(b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ? is, ? is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ? is, ? is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it ? is, ? is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it ?

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 82 of 107
---	---	--

Name of Offeror or Contractor:

is, ? is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ? is, ? is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it ? is, ? is not an SDVOSB concern.

(i) It ? is, ? is not a service-disabled veteran-owned small business concern; or

(ii) It ? is, ? is not a service-disabled veteran-owned joint venture that complies with the requirements of 13 CFR 125.18(b)(1) and (2). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each service-disabled veteran-owned small business concern participating in the joint venture shall provide representation of its service-disabled veteran-owned small business concern status.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it ? is, ? is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that

(i) It ? is, ? is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ? is, ? is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C.645(d), any person who misrepresents a firms status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

K-13 52.204-17 OWNERSHIP OR CONTROL OF OFFEROR AUG/2020

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means--

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 83 of 107
---	---	--

Name of Offeror or Contractor:

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it [] has or [] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates "has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code: _____

Immediate owner legal name: _____

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity?:

[] Yes or [] No.

(d) If the Offeror indicates "yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: _____

Highest-level owner legal name: _____

(Do not use a "doing business as" name)

(End of provision)

K-14 52.204-20 PREDECESSOR OF OFFEROR

AUG/2020

(a) Definitions. As used in this provision--

"Commercial and Government Entity (CAGE) code" means--

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

"Predecessor" means an entity that is replaced by a successor and includes any predecessors of the predecessor.

"Successor" means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it [] is or [] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: _____ (or mark "Unknown").

Predecessor legal name: _____.

(Do not use a "doing business as" name).

(End of provision)

K-15 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO

NOV/2021

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 84 of 107
---	--	--

Name of Offeror or Contractor:

SURVEILLANCE SERVICES OR EQUIPMENT

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in the provision at 52.204-26, Covered Telecommunications Equipment or Services--Representation, or in paragraph (v) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Items.

(a) Definitions. As used in this provision--

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition. (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures. (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

Name of Offeror or Contractor:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

K-16

52.207-4

ECONOMIC PURCHASE QUANTITY-SUPPLIES

AUG/1987

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 86 of 107
----------------------------------	--	------------------------------

Name of Offeror or Contractor:

OFFEROR RECOMMENDATIONS

ITEM	QUANTITY	PRICE QUOTATION	TOTAL

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Governments requirements indicate that different quantities should be acquired.

(End of Provision)

K-17 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS OCT/2018
(a) Definitions. As used in this provision--

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means--

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in--
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.
- (iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 87 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> .

(End of provision)

K-18 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS--CERTIFICATION NOV/2021

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined at FAR 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

___ (1) The Offeror certifies that--

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/> ; or

___ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless--

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 88 of 107
----------------------------------	--	------------------------------

Name of Offeror or Contractor:

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has--
- (i) Waived application under U.S.C. 2593e(d) or (e); or
- (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C.2593e(b).
- (e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K-19 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION MAY/2021

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

- (a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.
- (b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.
- (c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.
- (d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:
- The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.
- (e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:
- (1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).
- (2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.
- (3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).
- (4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 89 of 107
Name of Offeror or Contractor:		

(End of provision)

K-20

252.225-7973

PROHIBITION ON THE PROCUREMENT OF FOREIGN-MADE UNMANNED AIRCRAFT SYSTEMS--REPRESENTATION (DEVIATION 2024-00014)

AUG/2024

(a) Definition. As used in this provision, covered foreign country has the meaning given in the 252.225-7972, Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-00014), clause of this solicitation.

(b) Prohibition. Section 848 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2020 (Pub. L. 116-92) and section 817 of the NDAA for FY 2023 (Pub. L. 117-263) prohibit DoD from

(1) Using or procuring an unmanned aircraft system (UAS), or any related services or equipment, that

(i) Is manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(ii) Uses flight controllers, radios, data transmission devices, cameras, or gimbals manufactured in a covered foreign country, or by an entity domiciled in a covered foreign country;

(iii) Uses a ground control system or operating software developed in a covered foreign country, or by an entity domiciled in a covered foreign country; or

(iv) Uses network connectivity or data storage located in, or administered by an entity domiciled in, a covered foreign country;

(2) Using or procuring a system for the detection or identification of a UAS, or any related services or equipment, that is manufactured in a covered foreign country or by an entity domiciled in a covered foreign country; or

(3) On or after October 1, 2024, entering into or renewing a contract with an entity that operates, as determined by the Secretary of Defense, equipment from

(i) Da-Jiang Innovations (or any subsidiary or affiliate of Da-Jiang Innovations);

(ii) Any entity that produces or provides unmanned aircraft systems and is included on the Consolidated Screening List maintained by the International Trade Administration of the Department of Commerce ([https://www.trade.gov/consolidated \ '02screening-list](https://www.trade.gov/consolidated-%20screening-list)); or

(iii) Any entity that produces or provides unmanned aircraft systems and

(A) Is domiciled in a covered foreign country; or

(B) Is subject to unmitigated foreign ownership, control, or influence by a covered foreign country, as determined by the Secretary of Defense in accordance with the National Industrial Security Program.

(c) Representations.

(1) By submission of its offer, the Offeror represents that

(i) It will not provide or use a UAS, as described in paragraph (b)(1) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation; and

(ii) It will not provide or use a system for the detection or identification of a UAS, as described in paragraph (b)(2) of this provision, in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(2) It is not an entity described in paragraph (b)(3) of this provision.

(End of provision)

K-21

252.239-7098

PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES--REPRESENTATION (DEVIATION 2021-00003)

APR/2021

(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 90 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
L-1	52.204-6	UNIQUE ENTITY IDENTIFIER	OCT/2016
L-2	52.204-7	SYSTEM FOR AWARD MANAGEMENT (NOV2024)	NOV/2024
L-3	52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG/2020
L-4	52.204-22	ALTERNATIVE LINE ITEM PROPOSAL	JAN/2017
L-5	52.207-1	NOTICE OF STANDARD COMPETITION	MAY/2006
L-6	52.207-6	SOLICITATION OF OFFERS FROM SMALL BUSINESS CONCERNS AND SMALL BUSINESS TEAMING ARRANGEMENTS OR JOINT VENTURES (MULTIPLE-AWARD CONTRACTS)(AUG 2024)	AUG/2024
L-7	52.214-34	SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE	APR/1991
L-8	52.214-35	SUBMISSIONS OF OFFERS IN U.S. CURRENCY	APR/1991
L-9	52.215-1	INSTRUCTIONS TO OFFERORS--COMPETITIVE ACQUISITION	NOV/2021
L-10	52.215-16	FACILITIES CAPITAL COST OF MONEY	JUN/2003
L-11	52.216-27	SINGLE OR MULTIPLE AWARDS	OCT/1995
L-12	52.232-38	SUBMISSION OF ELECTRONIC FUNDS TRANSFER INFORMATION WITH OFFER	JUL/2013
L-13	252.204-7019	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS	NOV/2023
L-14	252.204-7024	Notice on the Use of the Supplier Performance Risk System (Mar 2023)	MAR/2023
L-15	252.215-7008	ONLY ONE OFFER (DEC 2022)	DEC/2022
L-16	252.215-7013	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)	JAN/2023
L-17	252.215-7016	NOTIFICATION TO OFFERORS--POSTAWARD DEBRIEFINGS (DEC 2022)	DEC/2022
L-18	252.225-7003	REPORT OF INTENDED PERFORMANCE OUTSIDE THE UNITED STATES AND CANADA--SUBMISSION WITH OFFER (JAN 2025)	JAN/2025
L-19	52.211-14	NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE	APR/2008

Any contract awarded as a result of this solicitation will be [] DX rated order; [] DO rated order; certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR 700), and the Contractor will be required to follow all of the requirements of this regulation.

(End of Provision)

L-20	52.216-1	TYPE OF CONTRACT	APR/1984
------	----------	------------------	----------

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of Provision)

L-21	52.233-2	SERVICE OF PROTEST	SEP/2006
------	----------	--------------------	----------

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from John C. Scott Army Contracting Command - New Jersey by email at john.c.scott158.civ@army.mil.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 91 of 107
---------------------------	---	-----------------------

Name of Offeror or Contractor:

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L-22 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE FEB/1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

L-23 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS NOV/2020

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR SUPPLEMENT (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Offerors shall provide information by addressing each Factor/Subfactor in the format and sequence identified in the solicitation. Offerors must provide information in sufficient detail to allow the Government to make a best value assessment of the Offerors capability to support the proposed response to the evaluation criteria. Proposals that do not contain the information requested in the solicitation risk being determined unacceptable by the Government. The Government will not assume the Offeror possesses any capability, understanding, or commitment not specified in the proposal. The proposal must not merely repeat the solicitation requirements, but rather must provide convincing documentary evidence in support of conclusive statements of how contract requirements will be met.

Proposals shall be valid through 180 days after qualified proposal receipt.

All questions concerning this procurement, either technical or contractual must be submitted in writing to the Contracting Officer via email. No phone calls will be accepted. No direct discussion between the technical representative and a prospective Offeror shall be conducted. Questions and proposals shall be submitted to the following points of contact:

Mr. John C. Scott Jr., Contracting Officer
E-mail: john.c.scott158.civ@army.mil

Ms. Kaley M. Casagrande, Contract Specialist
E-mail: kaley.m.casagrande.civ@army.mil

Mr. Jeremy P Contreras, Contract Specialist
E-mail: jeremy.p.contreras.civ@army.mil

L.1.0 PROPOSAL SUBMISSION REQUIREMENTS

L.1.1 Electronic copies of each volume shall be submitted through the Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE) suite at <https://piee.eb.mil/>. Proposals submitted by mail or hand-carried will not be evaluated. Proposals sent through proprietary or third-party File Transfer Protocol sites or DoD SAFE will not be retrieved. All proposals received after the exact time specified for receipt shall be treated as late submissions and will not be considered except under facts and circumstances allowed by the FAR. For instructions on how to post an offer, refer to the Posting Offer demo: https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf.

L.1.2 It is the Offerors responsibility to obtain written confirmation of receipt of all electronic files of the full proposal by the

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 92 of 107
---	---	--

Name of Offeror or Contractor:

ACC-NJ Contracting Office. In the event that the PIII Solicitation Module is down, the alternate method for proposal submission is via email to: john.c.scott158.civ@army.mil, kaley.m.casagrande.civ@army.mil and jeremy.p.contreras.civ@army.mil :b ONLY. The Offeror must obtain prior approval from the Contracting Officer to use the alternate submission method.

L.1.3 Offerors are responsible for ensuring electronic copies are virus-free and shall run an anti-virus scan before submission. Electronic copies of each volume shall be compatible with the following software products: Adobe Acrobat Reader 11 and Microsoft Office Suite 2016. Narrative portions of the proposal shall be in Adobe Acrobat portable document file (pdf) searchable text format. The Offeror shall not embed sound or video (e.g., MPEG) files into the proposal files. Electronic files shall be clearly identified for each volume, section, and item. Each volume shall be submitted electronically to the Contracting Officer and Contract Specialist via PIII at https://piee.eb.mil/. Any portion of the proposal that is changed (as a result of discussions or proposal revisions) should be annotated and dated. Each volume shall begin at the top of a page and be clearly labeled with its Title.

L.1.4 Each paragraph should be single spaced and shall be separated by at least one blank line. A standard, 12-point minimum font size applies. Arial or Times New Roman fonts are required. Tables and illustrations may use a reduced font size no less than 8-point and may be produced in landscape mode.

L.1.5 The following volumes of material shall be submitted:

VSolicitation, Offer and Award Documents, and Certifications / Representations, Small Business Subcontracting Plan, if applicable

Each volume shall be as brief as possible, consistent with complete submission. Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government. The page count will be made by counting the pages from left to right, consecutively. Pages that exceed the page limitation will not be evaluated. Each paragraph shall be separated by at least one blank line. Annexes, documentation and attachments that are submitted by the Offeror, which are not required as part of the solicitation, will count against the page limitations. The following will not count against page limitations: volume title pages, table of contents pages, cross-referencing pages, indices, and acronym lists. Pages should not exceed 8-1/2 inches in width by 11 inches in length; larger pages depicting such items as sketches, factory floor layouts, etc. may be used. The font used shall not be less than 10 point.

L.2.0 PROPOSAL FILES

L.2.1 Format. The submission shall be clearly indexed and logically assembled. Each volume shall be clearly identified and shall begin at the top of a page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date and solicitation number in the header and/or footer. A Table of Contents should be created using the Table of Content feature in Microsoft (MS) Word. All proposal volumes shall be marked with the appropriate Controlled Unclassified Information (CUI) markings. MS Word (doc) files shall use the following page setup parameters:

Margins Top, Bottom, Left, Right 1
Gutter 0
From Edge Header, Footer 0.5
Page Size, Width 8.5
Page Size, Height 11

L.2.2 The following additional restrictions apply:

:i a. File Packaging. All of the proposal files shall be compressed (zipped) into one file entitled proposal zip using WinZip version 6.2 or later, or as separate uploads in their native format, i.e. doc, xls, ppt, etc. Files shall be in read-only format, using PDF files. All price breakdown information to aid in the cost/price evaluation shall be submitted in Microsoft Office Excel Read/Write format and viewable in Microsoft Excel 2016. **Please note Self extracting exe files are not acceptable.

:i b. Content Requirement. All information shall be confined to the appropriate file. The Offeror shall confine submissions to essential matters, sufficient to define the proposal in a concise manner, to permit a complete and accurate evaluation of each proposal. Each file of the proposal shall consist of a Table of Contents, Summary Section, and the Narrative discussion. The Summary Section shall contain a brief abstract of the file. Proprietary information shall be clearly marked. The following shall be included in the Narrative discussion:

(i) VOLUME I Technical. The volume shall be organized into the following sections: Production Capability, Quality System and Critical Characteristics Safety Plan, and Management System

:i (1) Section 1 Subfactor 1 Production Capability

_Hlk124842869The Offeror shall provide a detailed description and Process Map of the proposed manufacturing

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 93 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

processes that is realistic and achievable for both the prime contractor and any major/key subcontractors for the 120mm Mortar Shell Bodies. This includes all subcontractors who will be providing critical hardware/services or whose subcontract is for more than 25 % of the total proposed cost/price.

The Process Map and detailed description shall include all steps required for material processing, manufacture, assembly, testing, inspection, marking, coating, packaging and storage as well as sequence of operations for all assemblies, subassemblies and parts.

The detailed description shall indicate which elements are manufactured in-house, which are subcontracted, and/ or are purchased material/parts.

The Offeror shall identify both prime and any major/key subcontractors essential manufacturing and test facilities, equipment, and tooling.

d. The Offerors shall identify capability for storage of finished product awaiting acceptance.

e. The Offeror shall provide information and data on facilities, equipment, and tooling, required to concurrently meet the proposed production rates for each solicited item listed below. Descriptions shall include expected throughput and maximum rates available, bottleneck operations and down time:

- :i 20,000 each 120mm M933A1/M934A1 HE Shell Bodies per month;
- 2.20,000 each 120mm M931 FRPC Shell Bodies per month;
- 3. 5,000 each 120mm M929 Smoke Shell Bodies per month;
- 4. 3,000 each 120mm M983/M930 Illum Shell Bodies per month;

*NOTE: For the HE and FRPC shell bodies, the information provided does not need to be concurrent production, but rather one or the other, in addition to the Smoke and Illum requirements.

:i (2) :i Section 2 Subfactor 2 Quality Assurance and Critical Characteristics Safety Plan

The Offeror shall provide a description of the Quality Assurance and Critical Characteristics Safety Plan to meet the Quality Assurance requirements as defined in the solicitation. The Offeror shall describe in detail the plan that is to be used for the 120mm Mortar Shell Bodies. The Offeror shall provide as a minimum in their plan:

The Offeror shall describe their quality system in sufficient detail to demonstrate its suitability for use in producing, and controlling, the 120mm Mortar Shell Bodies.

The Offeror shall indicate whether their quality system is certified to, or compliant with, Industry Standards such as ISO 9001:2015 or equivalent quality program acceptable to the Government. Should the quality system be certified to an industry standard, proof of certification shall be provided.

The Offerors description of their Quality Management System (QMS) should include, but is not limited to, control of documents/records, internal audits, calibration procedures, internal corrective action procedures, control of nonconforming material, and personnel training procedures.

The Offeror shall describe the process that will be used to flow down all quality requirements to major/key subcontractors and suppliers and how it will be used to verify there is adequate control of vendor product.

The Offeror shall identify and describe quality tools, systems, or any other initiative to be used to minimize quality problems in support of the solicitation requirements.

:i The Offeror shall identify each Critical Characteristic and related critical processes for 120mm Mortar Shell Bodies.

The Offeror shall describe in detail each piece of equipment involved in the inspection and the specific processes for inspection of each Critical Characteristic at both the prime and subcontractor level.

The Offeror shall provide a detailed description of the steps to be taken to prevent a critical defect from occurring, to include the identification of the processes and areas that could contribute to a critical non-conformance and how those processes will be controlled.

The Offeror shall describe the process to be followed if a critical defect occurs.

The Offeror shall describe all processes to meet the quality requirements on Critical, Major, and Minor characteristics for the 120mm Mortar Shell Bodies.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 94 of 107 MOD/AMD
Name of Offeror or Contractor:		

:i (3) Section 3 Subfactor 3 Management System

The Offeror shall provide a Management Plan with details how the manufacturing of all 120mm Mortar Shell Bodies will meet the solicitation requirements.

The Offeror shall provide an Integrated Master Schedule (IMS) which supports the achievement of First Article Test (FAT) into the minimum production rates identified for each item in this solicitation. Refer to Production Capability Subfactor for minimum rates for each solicited item.

The IMS shall include and synchronize all significant activities, events, milestones, Contract Data Requirements Lists (CDRLs), long lead items, any equipment verifications and qualifications, and any major/key subcontractors schedules.

The IMS shall illustrate the interdependencies of all significant activities, events, milestones and CDRLs.

The IMS shall clearly identify the critical path and supporting narrative of the analysis.

The Offeror shall describe and identify the Integrated Product Team (IPT) relevant to this solicitation.

This description shall include the IPT structure, listing of key positions, interrelationships, essential skills, responsibilities, and the reporting chain within the IPT structure to meet the requirements of this solicitation.

The description shall clearly identify the qualifications for each key position including properly skilled personnel in order to demonstrate the Offerors clear understanding of the technical and production requirements in this solicitation.

The Offeror shall identify key operational positions in the areas of production and quality, and list specific qualifications, certifications and other information relevant to their ability to meet the requirements in this solicitation. If new personnel are required to meet solicitation requirements, the Offeror shall include a plan on how they will hire/train new personnel.

(ii) VOLUME II Past Performance: This volume shall contain past performance information regarding similar contracts. Offerors shall submit a summary in the format below of all Government and/or commercial contracts for the prime Offeror and each major subcontractor in performance or awarded during the past three years, from the issue date of this solicitation, which are relevant to the efforts required by this solicitation. Submission of the identified contracts shall be in Excel format to include contractually scheduled delivery dates, actual delivery dates, quantities and how many days over/under (i.e early/late deliveries). Relevant efforts are defined as efforts that are the same as or similar to the effort (as compared to North American Industry Classification System (NAICS) code 332993) required by the solicitation. Data concerning the Offeror shall be provided first, followed by each proposed major subcontractor, in alphabetical order. This volume shall be organized into the following sections:

(1) Section 1 Contract Descriptions. This section shall include the following information in the following format.

(a) Contractor/Subcontractor place of performance, Commercial and Government Entity (CAGE) Code and Unique Entity Identifier(UEI). If the work was performed as a subcontractor, also provide the name of the prime contractor and Point of Contact (POC) within the prime contractor organization (name, and current address, e-mail address, and telephone and fax numbers).

(b) Government contracting activity, and current address, Procuring Contracting Officers name, e-mail address, telephone and fax numbers.

(c) Governments technical representative/Contracting Officers Representative and current email address, telephone and fax numbers.

(d) Government contract administration activity and the Administrative Contracting Officers name, and current e-mail address, telephone and fax number.

:i (e) Government contract administration activitys Pre-Award Monitors name, and current e-mail address, telephone and fax numbers.

(f) Contract Number and, in the case of Indefinite Delivery type contracts, General Services Administration contracts, and Blanket Purchase Agreements, include Delivery Order Numbers.

(g) Contract Type (specific type such as Fixed-Price (FP), Cost Reimbursement (CR), Time & Material (T&M),

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 95 of 107
---	---	--

Name of Offeror or Contractor:

etc.). In the case of Indefinite Delivery contracts, indicate specific type (Requirements, Definite Quantity, and Indefinite Quantity) and secondary contract type (FP, CR, T&M, etc.).

:i (h) Awarded price/cost.

:i (i) Final or projected final price/cost.

(j) Original delivery schedule, including dates of start and completion or work.

(k) Final or projected final, delivery schedule, including dates of start and completion of work.

(2) Section 2 Performance. Offerors shall provide a specific narrative explanation of each contract listed in Section 1, Contract Description, describing the objectives achieved and detailing how the effort is relevant to the requirement of this solicitation.

(a) For any contracts that did not/do not meet original schedule or technical performance requirements, provide a brief explanation of the reason(s) for the shortcomings and any corrective action(s) taken to avoid recurrence. The Offeror shall list each time the delivery schedule was revised and provide an explanation of why the revision was necessary. All Requests for Deviation and Requests for Waiver shall be addressed with respect to causes and corrective actions. The Offeror shall also provide copy of any Cure Notices or Show Cause Letters received on each contract listed and a description of any corrective action implemented by the Offeror or proposed subcontractor. The Offeror shall indicate if any of the contracts listed were terminated and the type and reasons for the termination.

(b) For all contracts, the Offeror shall provide data on all manufacturing warranty returns. Data shall delineate total number of warranty returns, number of Could Not Duplicate (CND), number of failures attributable to Government Furnished Equipment (GFE) component failures, and number and nature of failures attributable to the Offerors delivered product.

(3) Section 3 Subcontracts. Offerors shall provide an outline of how the effort required by the solicitation will be assigned for performance within the Offerors corporate entity and among the proposed subcontractors. The information provided for the prime Offeror and each proposed major/key subcontractor must include the entire company name, company address, CAGE Code, UEI Number and type of work to be performed by citing the applicable Government SOW subparagraph number. This includes all subcontractors whose subcontract is more than 25 % of the total proposed cost/price. This section will further include written consent of major subcontractors to allow the disclosure of their subcontractors past performance information to the Offeror. In addition, letters of commitment shall be included for all major subcontractors.

:i (4) Section 4 New Corporate Entities. New corporate entities may submit data on prior contracts involving their officers and employees. However, in addition to the other requirements in this section, the Offeror shall discuss in detail the role performed by such persons in the prior contracts cited. Information should be included in the files described in the sections above. Letters of Commitment shall be included in the proposal for these employees in order to be considered.

(5) Past Performance Questionnaire. For all contracts identified in Section 1, Contract Descriptions, a Past Performance Questionnaire must be completed and submitted. The Offeror shall complete Part I of the Past Performance Questionnaire and e-mail the questionnaire to both the Government contracting activity and technical representative responsible for the past/current contract. The POCs shall be instructed to electronically complete Part II of the questionnaire and e-mail the entire questionnaire to the Contracting Office no later than the proposal due date, to john.c.scott158.civ@army.mil and kaley.m.casagrande.civ@army.mil and jeremy.p.contreras.civ@army.mil. The Offeror shall e-mail a list of all the POCs who were sent a questionnaire to the Contracting Officer. The Government must receive this list no later than the proposal due date. The POC List shall be submitted in Word for Windows Table Format to include the following fields: Solicitation Number; Offeror Name; Contract Number; Government Agency; POC Last Name, First Name; POC Title; POC Telephone Number; POC E-mail Address; and Date E-Mail to POC (month/day).

(6) Submissions. Offerors are discouraged from providing points of contact with another contractors facility, i.e., in case the other contractor is involved with submitting a competing offer on this requirement. Offerors shall provide and submit the prime contract number and all Governmental agency POCs in lieu of subcontract numbers or prime contract POCs in situations as described above.

:i (7) Small Business Participation Past Performance. All Offerors shall submit information substantiating the Offerors past performance in complying with FAR 52.219-8, Utilization of Small Business Concerns, maximizing opportunities for U.S. small business subcontractors. Offerors shall also provide a statement indicating whether any negative information has been reported in the past six years concerning the Offerors past compliance with FAR

Name of Offeror or Contractor:

52.219-8. If any such negative information has been reported, the Offeror may submit explanations or comments responding to such negative information. Offerors with no prior contracts containing FAR 52.219-8 shall certify the same.

:b
:b (iii) VOLUME III Small Business Participation: This volume is comprised of a single chapter. Offerors are responsible for including sufficient detail to permit a complete evaluation. Any information provided as part of the Small Business Participation Factor Volume may be used to correlate the evaluation of the other proposal volumes.

:b This provision applies to every Offeror (U.S. and non-U.S.), regardless of size status or locations of working facilities or headquarters. For proposal preparation purposes, the Offeror's Small Business Participation proposals shall be consistent with any subcontracting references/identification contained elsewhere in any other Factor Volume. Percentages are calculated using proposed total contract price as calculated in accordance with D.5.b.iv This price becomes the denominator and include first-tier subcontractors only. For the purpose of evaluating Small Business Participation, the total contract price is computed by summing the weighted evaluated prices for Initial FAT, Subsequent FAT and the Production CLINs, computed from the prices proposed in Attachment 0002. Offerors shall also explain their rationale as to why the percentage of SB participation being utilized for this effort is appropriate for their company. Offerors shall describe their approach and efforts undertaken to utilize small businesses (SB). SB targets will be incorporated into any resulting prime contract and contractors will be required to report SB participation.

:b
:b All Offerors, including Offerors who are themselves U.S. small business concerns based on the NAICS code assigned to this requirement, are to identify the extent to which U.S. small business concerns will be utilized as first-tier subcontractors in the performance of this proposed contract. U.S. small business concerns are defined (1) in FAR 19.001 and (2) by the criteria and size standards in FAR 19.102 for the applicable NAICS code. U.S. small business concerns include Small Businesses (SBs), Small Disadvantaged Businesses (SDBs), Woman-Owned Small Businesses (WOSBs), HUBZone Small Businesses (HUBZone SBs), Veteran-Owned Small Businesses (VOSBs), and Service Disabled Veteran-Owned Small Businesses (SDVOSBs).

:b (3) If the Offeror (to include any U.S. small business concerns who are proposing as part of a joint venture or teaming arrangement) is itself a U.S. small business concern, the Offeror's own participation as a SB, SDB, WOSB, HUBZone SB, VOSB, or SDVOSB will also be considered small business participation for the purpose of this evaluation. In this event, the extent of the Offeror participation as a U.S. small business concern shall be detailed in the same manner as subcontracts to first-tier U.S. small business concerns.

:b
:b :i (4) Small Business Amounts: All Offerors shall address anticipated U.S. small business concern participation and subcontracting based on the total contract dollars proposed by the Offeror.

(5) The Offeror shall provide information for small business participation and subcontracting in a table format in accordance with the following example:

:b :i

Business Category	\$ Cost All	\$ of SB	Cost Total	Subcontractor
Contract Total Price	\$43.00M			
SB	\$10.34	24.00%	\$10.34 of \$43.00	
SDB	\$2.86	6.65%	\$2.86 of \$43.00	
SDB	\$2.36	5.50%	\$2.36 of \$43.00	
WOSB	\$1.55	3.60%	\$1.55 of \$43.00	
HUBZone SB	\$1.08	2.50%	\$1.08 of \$43.00	
VOSB	\$1.55	3.60%	\$1.55 of \$43.00	
SDVOSB	\$1.46	3.40%	\$1.46 of \$43.00	

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 97 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

:b :i (6) Guidance for filling in the above "Small Business Participation"

Table:

:b Include first-tier subcontractors only. Note that members of a joint venture may be considered the Offeror or the first tier subcontractors, depending on the legal form of the joint venture as defined in its agreement document.

If the Offeror is a U.S. small business concern, detail the extent of the Offeror participation as a U.S. small business concern in the same manner as subcontracts to first tier U.S. small business concerns.

:b

:b (c) Percentages should be rounded to the nearest tenth of a percent.

:b (7) Additional Guidance for particular Business Categories:

:b

:b For "Contract Total Price": Include the Offeror's proposed Total Contract Price on this line.

For SB: Include U.S. small business concerns from all categories (i.e. SB, SDB, WOSB, HUBZone SB, VOSB, and SDVOSB and in the dollars and percentage on this line. The SDB, WOSB, HUBZone SB, VOSB and SDVOSB are subcategories of SB and the dollars in each of these may not add to match the total dollars in the SB line due to the following: In some cases the same dollars may be reported in more than one block (i.e., a \$10,000 subcontract to a Woman-Owned Small Business that is also a Service-Disabled Veteran-Owned Small Business should be entered on four rows: \$10,000 under SB, \$10,000 under WOSB, \$10,000 under VOSB and \$10,000 under SDVOSB). Be sure that the dollars are counted in the SB line only once and not four times (e.g. \$40,000 representing the same firm participating at \$10,000 in differing categories). Note that the SB percentage is not simply a total of the percentages of each SB subcategory and must be calculated separately as shown in the chart.

:b

:b

For HUBZone SB: Include only "SBA certified" HubZone SBs. Note that this is different from some of the state HUB certifications.

:b (8) Small Business List: All Offerors shall provide the names and CAGE codes of small business concerns (including the Offeror if a small business concern) who would participate in accomplishing the proposed contract; the small business classification of each U.S. small business concern (i.e. SB, SDB, WOSB, HUBZone SB, VOSB and SDVOSB); a short description of the specific services to be provided by each small business concern; and the estimated total dollars for each service or product.

:b (a) This data shall be provided in a table format in accordance with the following example:

```

:b :i -----
| Name of SB | CAGE | | Description of | Total $ |
| :b | Concern | Code | Location | SB Class | Supply or Service | (in Millions) |
:b :i -----
| ABC Co | 123XX | City, USA | SB | Wire | $0.50 |
|-----|
| DEF Co. | XX123 | City, USA | SB | Plating | $0.75 | |
|---|---|---|---|---|---|---|
| :b | GHI, Inc | DD123 | City, USA | SB, WOSB, VOSB | Circuit Cards | $1.20 |
:b :i -----

```

:b (b) If a small business does not have a CAGE code, insert the word "None" in the table above. Note that during the evaluation, the Government may request that the Offeror submit a letter from the small business affirming the information provided in your proposal.

:b

:b (c) For SB Classifications(s), list all SB classifications that apply to each concern in the table above.

:b (9) If the Offeror IS NOT a U.S. small business concern and must submit a Small Business Subcontracting Plan under the RFP in accordance with FAR 52.219-9, the Small Business Subcontracting Plan shall be consistent with the Offeror's Small Business Participation proposal information provided in response to D.4.4.5 (recognizing that the Small Business Subcontracting Plan percentages will be different in that the percentage calculation denominator is total subcontracting amount as opposed to this Small Business Participation Factor where the percentage calculation denominator is the Offeror's proposed Contract Target Price).

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 98 of 107
Name of Offeror or Contractor:		

:b :i (10) Compliance with FAR 52.219-9.

:b (a) Offerors which are both: (a) other than U.S. small business concerns (as defined by the NAICS code applicable to the RFP), and (b) have had prior contracts requiring the submission of a Small Business Subcontracting Plan in accordance with FAR 52.219-9 are to: Provide a description of their performance in complying with the requirements of FAR 52.219-9, including documentation of both their goals and their accomplishment of the goals established under subcontracting plans of prior contracts performed over the past twelve (12) months (from date of solicitation issuance). This documentation shall include Individual Subcontracting Reports (ISRs/DD Form 294s) which list both goals and accomplishments against individual or master plans. If over the last twelve (12) months from the date of RFP release, the Offeror reported accomplishments against commercial or comprehensive subcontracting plans in lieu of individual or master plans, the Offeror shall submit the plans to document the goals and the Summary Subcontract Reports (SSRs/DD Form 295s) to document the accomplishments. (Note: if the Offeror has not performed a contract over the past twelve (12) months, which included FAR 52.219-9, the Offeror shall so state).

(b) Offerors which have had prior contracts requiring a Small Business Subcontracting Plan IAW FAR 52.219-9 and provide the information requested in D.4.4.9.1 above shall not respond to D.4.4.10 below.

(c) If the reporting entity listed on a subcontracting report is different from the name of the proposing prime, provide an explanation of the legal relationship between the other entity and the proposing prime and a description of how the other entity's small business accomplishments reported are applicable to the current proposal. This explanation should include Business Name, CAGE Code and DUNS number of the other entity and the proposing prime.

:b (11) Approach to meeting FAR 52.219-8. Offerors which are either U.S. small business concerns, or other than U.S. small business concerns (as defined by the NAICS code applicable to the RFP) having had no prior contracts requiring a Small Business Subcontracting Plan in accordance with FAR 52.219-9 shall substantiate their proposed approach to meeting the requirement of FAR 52.219-8.

Substantiation may include providing:

:b A description of the Offeror's performance, over the past twelve (12) months (from date of solicitation issuance), in complying with the requirements of FAR 52.219-8 (Note: if the Offeror has not performed a contract over the past twelve (12) months (from date of solicitation issuance), which included FAR 52.219-8, the Offeror shall so state);

A description and available documentation of any methods or techniques used to promote small business participation;

:b

:b Any listings of U.S. small business concerns who are subcontracting candidates;

:b

:b :i Internal procedures used to monitor small business participation during contract performance; and/or

:b

:b Any other information substantiating that the Offeror will satisfy the requirements of FAR 52.219-8.

:b

(iv) VOLUME IV Price: The volume shall be organized into the following sections:

:b

:b (1) Electronic Copy. Offerors shall not propose prices in Section B. Offerors shall submit their prices in the Price Matrix provided in Section J, Attachment 0002 of the Solicitation. Prices from the Price Matrix will be utilized in the performance of a price analysis in accordance with FAR 15.404-1(b). However, if deemed necessary by the Contracting Officer, a cost analysis may be performed per FAR 15.404-1(c). The Offerors Price Matrix and any documentation that is based on or includes mathematical calculations (e.g., calculations for rental value of government property in the Offerors possession, calculations where there is the appearance of unbalanced pricing, etc.) shall be submitted in electronic, executable format utilizing Microsoft Excel. PDFs are not acceptable. Any additional information necessary to explain the proposed pricing that does not contain mathematical calculations may be submitted in Adobe, Microsoft Word or Microsoft Excel format. Electronic links are only permissible within the Price Volume. If files contain links, the links must be intact and maintained through all revisions. The Offeror shall not include pivot tables in Excel spreadsheets.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 99 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

:b

:b (2) Compliance. Failure to comply with the solicitation requirements for Price information may result in an adverse assessment of an Offerors proposal and reduce or eliminate its chance of being selected for award. Offerors shall ensure that the information presented in this volume is consistent and correlates with the information contained in the other proposal volumes. Also, the Offeror shall ensure that the information submitted in this volume is consistent with and fully supports the amounts set forth in the Standard Form (SF) 33 and continuation sheets.

:b

:b (3) General Instructions. In accordance with FAR 15.402 and 15.403-1, certified cost or pricing data are not required based on the fact that adequate competition is expected for this procurement. Information other than certified cost or pricing data may be provided in contractor format providing that sufficient information is made available. Information submitted shall be prepared following the instruction in FAR 15.403-5. If after receipt of proposals the Contracting Officer determines that there is insufficient information available to determine price reasonableness and none of the exceptions at FAR 15.403-1 apply, the Offeror may be required to submit cost or pricing data. There are no page limitations for this volume. Proposal information included in this volume which is not directly related to Price will be disregarded.

:b

:b (4) Single Offer Received. In the event that adequate competition is not obtained (i.e., single responsible Offeror), the Contracting Officer will incorporate FAR 52.215-20 entitled, Requirements for Cost or Pricing Data or Information Other Than Cost or Pricing Data, into the solicitation and request a Certificate of Current Cost or Pricing Data. In accordance with Defense FAR Supplement 215.371-3, the Contracting Officer shall obtain additional cost or pricing data, if needed to determine a fair and reasonable price. If the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, the cost or pricing data shall be certified. If the offered price can still not be determined fair and reasonable, the Contracting Officer shall enter into negotiations with the Offeror to establish a fair and reasonable price. The negotiated price will not exceed the offered price.

(5) The Offeror shall submit pricing in the Price Matrix for all priced Contract Line Item Numbers (CLINs), for all ordering periods, for all specified quantities. Failure to provide a price for any item/CLIN/ordering period may result in the offer not being considered for award.

:b Production CLINs: The Offeror shall propose a FFP unit price for each CLIN for all ordering periods for all specified quantities reflected in the Price Matrix Production CLINs Tab. The proposed unit prices for production CLINs shall be inclusive of all fabricating, testing, inspection, packaging and delivery of the solicited item.

:b

:b First Article Test (FAT) CLINs: The Offeror must propose a FFP for each Initial FAT and Additional FAT CLINs for all ordering periods reflected in the Price Matrix FAT CLINs Tab. Failure to provide a price for all required FAT CLINs may result in the offer not being considered for award.

:b

(6) Delivery Orders will be issued in accordance with the procedures for future Delivery Orders as stated in Section H of the Solicitation.

(7) In accordance with FAR 45.202(a), the Government shall consider any potentially unfair competitive advantage that may result from an Offeror using Government property already in the Offerors or subcontractors possession. To eliminate the competitive advantage, a rental equivalent evaluation factor shall be added to each offer which is predicated on the use of Government property. Offerors shall propose the per unit value of Government property for each CLIN/specified quantity in accordance with FAR 52.245-9, Use and Charges in the Price Matrix attachment to the solicitation. Offerors shall provide detailed calculations demonstrating how the per unit rental value was derived and documentation supporting the rental charges in sufficient detail to permit verification of the rental charges and evaluation of the per unit rental value.

(8) Unbalanced Pricing. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly over or understated as indicated by the application of cost or price analysis techniques. The greatest risks associated with unbalanced pricing occur when (a) Startup work, mobilization, first articles, or first article testing are separate line items; (b) Base quantities and option quantities are separate line items; or (c) The evaluated price is the aggregate of estimated quantities to be ordered under separate line items of an indefinite-delivery contract. Offerors shall provide documentation, including data, calculations and supporting rationale, for any apparent unbalanced pricing which will be used to determine if the proposed prices are balanced.

:b

:b (iv) VOLUME IV SOLICITATIONS, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS/REPRESENTATIONS

:b

:b Certifications and Representations Each Offeror shall complete (fill-in and signatures) the solicitation sections

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIINMOD/AMD	Page100 of 107
--------------------	---	----------------

Name of Offeror or Contractor:

indicated below using the file (without modification to the file) provided with the solicitation. An authorized official of the firm shall sign the SF 33 and all certifications requiring original signature. An Acrobat PDF file shall be created to capture the signatures for submission.

:b
Section A SF33, Solicitation, Offer and Award
Section G Contract Administration Data
:b :i Section K Representations, Certification and Other Statements of Offerors
Small Business Subcontracting Plan

:b
:b Solicitations, Offer and Award Documents and Certifications/Representations shall not be addressed separately from that submitted in VOLUME IV SOLICITATIONS, OFFER AND AWARD DOCUMENTS AND CERTIFICATIONS /REPRESENTATIONS.
:b
:b

*** END OF NARRATIVE L0002 ***

DRAFT

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 101 of 107 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

SECTION M - EVALUATION FACTORS FOR AWARD

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

M.1.0 BASIS FOR AWARD

Government intends to make up to two awards as a result of this solicitation. The Government will select for award the proposals that are most advantageous and represents the best value to the Government, with the Source Selection Authority (SSA) giving the appropriate consideration to the four evaluation Factors and subfactors: Technical (Production Capability, Quality System and Critical Characteristics Safety Plan, Management System), Past Performance, Small Business Participation and Price. The Government will weigh the relative benefits of each proposal and award will be made based on an integrated assessment of the results of the evaluation. In making the integrated assessment of the evaluation results, the SSA will give due consideration to all of the Factors and Subfactors and their relative order of importance. For evaluation purposes, the following Technical Subfactors are of equal importance: Production Capability, Quality System and Critical Characteristics Safety Plan and Management System. These combined Technical Factors are more important than the Past Performance Factor, the Past Performance Factor is more important than the Small Business Participation Factor, and the Small Business Participation Factor is more important than Price. All non-Price Factors, when combined, are more important than Price. Price will be evaluated but will not be rated with a color or adjectival rating. Additionally, any Other than Small Business Offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a). The Small Business Subcontracting Plan will be evaluated in accordance with the Small Business Participation Factor. The Government reserves the right to make an award to other than the lowest priced Offeror, or to other than the Offeror with the highest Technical rating if the SSA determines that to do so would result in the best value to the Government. In order to be considered for award, a rating above "Unacceptable/Red" must be achieved for the Technical Factor and all Subfactors. Also, an offer with a Past Performance rating of Limited or No Confidence shall be deemed un-awardable.

M.2.0 FACTORS AND SUBFACTORS TO BE EVALUATED

Careful, full, and impartial consideration will be given to all proposals received pursuant to the solicitation. A team of Government personnel will evaluate each proposal relative to the Factors and Subfactors. The following evaluation factors and subfactors will be used to evaluate each proposal: Award will be made to the Offeror(s) whose proposal is most advantageous to the Government based upon an integrated assessment of the evaluation factors and subfactors described below. The Government reserves the right to make award(s) based upon the Price Factor if the Technical, Past Performance and Small Business Participation evaluation results of all Offerors' proposals are substantially the same. Offerors that receive a final rating of Red/Unacceptable at any Factor/Subfactor level are ineligible for award.

Factor 1: The Technical Factor is further divided into the following Subfactors:

- a. Subfactor 1 Production Capability
- b. Subfactor 2 Quality System and Critical Characteristics Safety Plan
- c. Subfactor 3 Management System

All Subfactors are of equal importance.

Evaluation of the Offeror's proposal shall address each Technical Subfactor as it applies to the SOW. A detailed explanation of the criteria for the evaluation is set forth in the Evaluation Approach, Paragraph D of this section. During evaluation of each proposal, the Government will assign each Technical Subfactor an adjectival rating and write a narrative evaluation reflecting the identified findings. The compilation of these Subfactor adjectival ratings will form the basis of the Technical Factor rating.

Factor 2: Past Performance: Each Offeror's past performance will be reviewed to determine relevancy and confidence assessment. The Past Performance Factor does not have any subfactors.

Factor 3: Small Business Participation: Small Business Participation will be evaluated and given a rating to see the extent to which each offeror credibly proposed to subcontract to small businesses. The Small Business Participation Factor does not have any subfactors.

Factor 4: Price: Price will be evaluated but not rated. Adjectival ratings shall not be used for Offerors' Price proposals. The resulting award(s) will be IDIQ contracts utilizing FFP delivery orders. Prices proposed in Attachment 0002 Price Matrix of Section J of the Solicitation will be utilized to compute a total evaluated price. Price reasonableness will be utilized in the evaluation of the

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 102 of 107
---	---	---

Name of Offeror or Contractor:

FFP effort. The Price Factor does not have any subfactors.

M.3.0 EVALUATION APPROACH

All proposals shall be evaluated by the Source Selection Team (SST).

M.3.1 The overarching evaluation approach for all Factors and Subfactors is as follows:

a. Adequacy of Response. The proposal will be evaluated to determine whether the Offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the solicitation. The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the solicitation.

b. Feasibility of Approach. The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which successful performance is contingent upon proven devices and techniques. The proposal will be evaluated to determine the extent to which the Offeror is expected to be able to successfully complete the proposed tasks and technical requirements within the required schedule.

M.3.2 The Technical Factor is divided into the following Subfactors:

M.3.2.1 Subfactor 1 Production Capability: The Government will evaluate the Offerors' detailed Manufacturing Plan for the production and testing of the 120mm Mortar Shell Bodies to meet the requirements of the solicitation. This plan will also be evaluated on the inclusion and details on major/key subcontractors as well as realism and achievability. The Offeror will provide information to substantiate the following areas:

- a. The Process Map and detailed description adequately includes all steps required for material processing, manufacture, assembly, testing, inspection, marking, coating, packaging and storage as well as sequence of operations for all assemblies, subassemblies and parts; and
- b. The detailed description indicates which elements are manufactured in-house, which are subcontracted, or are purchased material/parts; and
- c. The Offeror identifies both prime and any major/key subcontractors' essential manufacturing and test facilities, equipment, and tooling; and
- d. The Offeror identifies the capability for storage of finished product awaiting acceptance; and
- e. The Offerors description of the manufacturing process adequately lays out a clearly defined approach to concurrently meet the minimum monthly production rates required for each solicited item (below) with identification of the production rates/schedule, to include bottlenecks and down times, and the available and maximum capacities of the proposed prime and major/key subcontractor facilities, equipment and tooling.

- 1. 20,000 each 120mm M933A1/M934A1 HEShell Bodies per month;
- 2. 20,000 each 120mm M931 FRPC Shell Bodies per month;
- 3. 5,000 each 120mm M929 Smoke Shell Bodies per month;
- 4. 3,000 each 120mm M983/M930 Illum Shell Bodies per month;

*NOTE: For the HE and FRPC shell bodies, the information provided does not need to be concurrent production, but rather one or the other, in addition to the Smoke and Illum requirements.

M.3.2.2 Subfactor 2 Quality System and Critical Characteristics Safety Plan:

The Government will evaluate if the Offeror's detailed description of the Quality Management Plan meets solicitation requirements for the 120mm Mortar Shell Bodies. The Offeror's proposal must demonstrate the Offeror has a realistic and achievable plan that supports a low-risk approach to meet the Quality Assurance requirements as defined in the solicitation. The Government will evaluate the following areas for capability, adequacy, and completeness:

- a. The description of their quality system provides sufficient detail to demonstrate its suitability for use in producing, and controlling, 120mm Mortar Shell Bodies; and
- b. The description indicates whether the quality system is certified to, or compliant with, Industry Standards such as ISO 9001:2015 or an equivalent quality program system acceptable to the Government. If the quality system is certified to an industry standard, proof of certification is provided;

- c. The description of their Quality Management System (QMS) includes, at a minimum, control of documents/records, internal audits, calibration procedures, internal corrective action procedures, control of nonconforming material, and personnel training procedures; and
- d. The description of the process that will be used to flow down all quality requirements to major/key subcontractors and suppliers is adequately defined and its use to verify adequate control of vendor product is clearly illustrated; and
- e. The Quality tools, systems, or any other initiatives to be used to minimize quality problems in support of the solicitation requirements are adequately identified and described; and
- f. The Critical Characteristics and related critical processes for the 120mm mortar shell bodies are adequately identified; and
- g. A detailed description of each piece of equipment involved in the inspection and the specific processes for inspection of each Critical Characteristic at both the prime and subcontractor level is provided; and
- h. The detailed description of the steps listed to prevent a Critical defect from occurring, including the identification of the processes and areas that could contribute to a critical non-conformance and how those processes will be controlled are adequately described; and
- i. An adequate description of the process to be followed if a critical defect occurs is provided; and
- j. The description provided of all processes to meet the quality requirements on Critical, Major and Minor characteristics for the 120mm Mortar Shell Bodies is adequate.

M.3.2.3 Subfactor 3 Management System:

- The IMS adequately supports the achievement of First Article Testing (FAT) into the minimum production rates identified for each item being listed in this solicitation;
- a. The IMS includes and synchronizes all significant activities, events, milestones, Contract Data Requirements Lists (CDRLs), long lead items, any equipment verifications and qualifications, and any major/key subcontractors' schedules.
- b. The IMS illustrates the interdependencies of all significant activities, events, milestones and CDRLs.
- c. The IMS clearly identifies the critical path and provides a supporting narrative of an analysis of the IMS's critical path.
- d. The Integrated Product Team (IPT) identified and described is relevant to this solicitation.
- e. The IPT description includes an adequate IPT structure, listing key positions, interrelationships, essential skills, responsibilities, and the reporting chain within the IPT structure to meet the requirements of this solicitation.
- f. The description clearly identifies the qualifications for each key position, including properly skilled personnel, and demonstrates the Offeror's clear understanding of the technical and production requirements in this solicitation.
- g. The key operational positions in the areas of production and quality are adequately identified, including specific qualifications, certifications and other information relevant to meet the requirements in this solicitation. If new personnel are required to meet solicitation requirements, a plan on how they will hire/train new personnel is included.

In accordance with the Army Source Selection Supplement (AS3), Section 3.1, the Army methodology for evaluating Technical Approach and Related Risk is the Combined Technical/Risk Rating, (see Table 1 below). This methodology considers risk, in conjunction with the significant strengths, strengths, weaknesses, significant weaknesses, uncertainties, and deficiencies in determining technical ratings. The definitions of Technical Risk (Table 2) are included for further clarification but should not be evaluated as a separate rating.

TABLE 1 - COMBINED TECHNICAL/RISK RATINGS

Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page 104 of 107
---------------------------	---	------------------------

Name of Offeror or Contractor:

Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

TABLE 2 - TECHNICAL RISK DEFINITIONS

Adjectival Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

Findings Definitions

Significant Strength. An aspect of an Offerors' proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.

Strength. An aspect of an Offerors' proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

Deficiency. A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the Offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission or mistake).

Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation.

M.3.2.4 Past Performance Factor. The Government will evaluate the Offeror's record of past and current performance to ascertain the probability of successfully performing the required efforts of the solicitation.

a. Evaluation of past performance shall be in accordance with this plan utilizing the forms and questionnaires set forth in Appendix D.

b. The Government will focus its inquiries on the Offeror's (and major subcontractor's) record of performance as it relates to all solicitation requirements, including cost, schedule, performance and management of subcontractors and compliance with FAR 52.219-8, Utilization of Small Business Concerns, and FAR 52.219-9, Small Business Subcontracting Plan. For the purposes of this SSP/Requirement, major subcontractors are defined as members of an Offeror's overall team who are expected to perform 25 percent or more of the proposed effort. A significant achievement, problem, or lack of relevant data in any element of the work can become an important consideration in the evaluation process. Therefore, Offerors are reminded to include the most recent and relevant efforts (within the past three years) in their proposal. Absent any recent and relevant past performance history or when the performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned, the Offeror will be assigned a neutral confidence rating and its proposal will not be evaluated either favorably or unfavorably on past performance. The Government may use data provided by the Offeror

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN	Page 105 of 107 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

in its proposal and data obtained from other sources, including data in Government files or data obtained through interviews with personnel familiar with the contractor and their current and past performance under Federal, State or Local government or commercial contracts for same or similar services as compared to NAICS code 332993.

c. Offerors shall submit all Government and/or commercial contracts for the prime Offeror and each major subcontractor in performance or awarded during the past three years, from the issue date of this solicitation, which are relevant to the efforts required by this solicitation. The Government may consider a wide array of information from a variety of sources, but is not compelled to rely on all of the information available.

d. The past performance factor considers each Offeror's demonstrated recent and relevant record of performance in supplying products and services that meet the contract requirements. There are three aspects to the past performance evaluation: recency, relevancy, and quality.

(i) RECENCY: The first aspect is to evaluate the recency of the Offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information.

(ii) RELEVANCY: The second aspect is to determine how relevant a recent effort accomplished by the Offeror is to the effort to be acquired through the source selection. Relevancy is not separately rated; however, the following criteria (see Table 3) will be used to establish what is relevant which shall include similarity of service/support, complexity, dollar value, contract type, and degree of subcontract/teaming.

TABLE 3 - PAST PERFORMANCE RELEVANCY RATINGS

Rating	Definition
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires; or the data is not recent.

(iii) QUALITY ASSESSMENT: The third aspect assesses the overall quality of the Offerors past performance. Documented results from Past Performance Questionnaires, interviews, Contractor Performance Assessment Reporting System (CPARS), and other sources form the support and basis for this assessment.

e. Performance Confidence Assessment: Utilize the Performance Confidence Assessment (see Table 4 below) to select the most appropriate confidence level for each Offeror. Performance Confidence Assessment will be used to evaluate how confident the Government is in each contractor to fulfill all requirements stated in solicitation based on their Past Performance. Ensure the rationale for the conclusions reached are included.

TABLE 4 - PERFORMANCE CONFIDENCE ASSESSMENTS

Rating	Definition
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page106 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

that the Offeror will be able to successfully perform the required effort.

.3.2.5 Small Business Participation Factor. The Small Business Participation Factor will receive a color/adjectival rating. The Government will evaluate the extent of first-tier small business participation (in terms of the Offeror's proposed Total Contract Price) which the Offeror credibly proposes to subcontract to U.S. small business (SB) concerns (including Small Business (SB), Small Disadvantaged Businesses (SDB), Women-Owned Small Businesses (WOSB), Historically Underutilized Business Zone (HUBZone SB), Veteran-Owned Small Businesses (VOSB), and Service Disabled Veteran-Owned Small Businesses (SDVOSB) in the performance of the contract. For the purpose of this evaluation, the extent of Offeror (or joint venture partner/teaming arrangement) participation in proposed contract performance, where the Offeror is a U.S. small business concernOLE_LINK10OLE_LINK11, for NAICS code:b 332993, OLE_LINK10OLE_LINK11will also be considered small business participation.

The evaluation will consist of the following:

a. The extent to which the proposal identifies challenging goals for participation by U.S. small business concerns and the adequacy of the rationale that support those goals (to include, as described above, the participation of the Offeror if it is a U.S. small business concern). The extent of participation of such concerns will be evaluated in terms of the percentage of the Offeror's proposed Total Contract Price.

b. An assessment of the realism, which includes strengths and weaknesses, that the Offeror will achieve the levels of small business participation identified in the proposal. This assessment will be based on an assessment of the Offeror's proposed small business participation approach and the probability that the Offeror will satisfy commitments and requirements, on the resulting Program Name contract, based upon the extent of satisfaction of FAR 52.219-8 and/or FAR 52.219-9 (as applicable) commitments on prior contracts.

5 SMALL BUSINESS RATINGS

Color	Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives.
Purple	Good	Proposal indicates a thorough approach and understanding of small business objectives.
Green	Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business requirements.
Red	Unacceptable	Proposal does not meet small business objectives.

M.3.2.6 Price Factor. Adjectival ratings shall not be used for Offerors' Price proposals. The Government will fully evaluate all priced CLINs for all ordering periods for award. The evaluation of all ordering periods will not obligate the Government to place more than the minimum order. The Offeror's Price proposal will be evaluated as follows.

a. FFP Evaluation: For a price to be fair and reasonable, it must represent a price to the Government that a prudent person would pay in the conduct of competitive business. Prices proposed in Attachment 0002 Price Matrix will be utilized to compute a total evaluated price. A price reasonableness determination will be made on the total evaluated price, using one or more of the techniques described in FAR 15.404-1.

(i) If an Offeror proposes the use of Government property already in its possession, the total evaluated price will be adjusted to include a rental equivalent factor for each item of such property calculated in accordance with FAR 52.245-9. This adjustment will apply for the use of Government property by the Offeror as well as any subcontractor thereto. The value of the proposed Government property will be evaluated for cost realism.

b. Overall /Price Proposal Evaluation: The overall Price proposal will be evaluated for the following:

(i) Compliance: The Price proposal submitted by the Offeror will be evaluated for compliance based upon the submission requirements contained in the Section L Instructions to the Offerors.

(ii) Unbalanced Pricing: The Offeror's overall Price proposal will be evaluated for unbalanced pricing as defined in FAR 15.404-1(g). An offer may be rejected if the Contract Officer determines that the lack of balance poses an unacceptable risk to the Government (see FAR 15.404-1(g)(1) through FAR 15.404-1(g)(3)).

(iii) Errors: The Offeror's Price proposal will be reviewed for errors. The Offeror may be given an opportunity to clarify certain aspects of their proposal at the sole discretion of the Contracting Officer.

(iv) Total Evaluated Price: The Total Evaluated Price consists of summing the weighted evaluated prices for Initial FAT, Additional FAT and the Production CLINs computed from the prices proposed in Attachment 0002, Price Matrix, including the evaluated per unit rental

CONTINUATION SHEET	Reference No. of Document Being Continued W15QKN-25-R-0040 PIIN/SIIN MOD/AMD	Page107 of 107
--------------------	--	----------------

Name of Offeror or Contractor:

value for Government property in the Offeror's (and any subcontractor's) possession. The weighted evaluated prices will be calculated as follows:

M.3.2.5.1 Initial FAT and Additional FAT CLINs: The evaluated quantity will be the stated quantity/lot. The evaluated quantity will be multiplied by the proposed prices, including the evaluated per rental value to derive the evaluated amount, rounded to the nearest hundredth (two decimal places). The evaluated amount will be multiplied by the assigned weighting to derive a weighted evaluated price, rounded to the nearest whole dollar. The weighted evaluated prices will be summed to determine the weighted evaluated price for Initial and Subsequent FAT.

M.3.2.5.2 Production CLINs: A weighted unit price for each CLIN and ordering period will be computed by multiplying the assigned weight percent by the proposed unit price for the specified quantities, including the evaluated per rental value, rounded to the nearest hundredth (two decimal places) and summing the weighted unit prices within each CLIN. The weighted unit price for each CLIN will be multiplied by the evaluated quantity, which is based on the Governments estimates, to derive the weighted evaluated price for each CLIN. The weighted evaluated price for each CLIN/ordering period will be summed to compute the weighted evaluated price for the Production CLINs.

M.4.0 DISCUSSIONS

GOVERNMENT INTENT: The Government intends to award a contract(s) without discussions (except for clarification as described in FAR 15.306(a)), as permitted by FAR 15.306(a)(3) and FAR 52.215-1. However, the Government reserves the right to conduct discussions to permit Offerors to revise their proposals.

M.5.0 DETERMINATION OF RESPONSIBILITY

- For small businesses, a Certificate of Competency may be required by the Contracting Officer in accordance with FAR 19.6.
- A Preaward Survey may be required by the Contracting Officer in accordance with FAR 9.106.
- For actions over \$10M, a Preaward Clearance by the Office of Federal Contract Compliance Programs (OFCCP) will be required in accordance with FAR 22.805(a).

*** END OF NARRATIVE M0001 ***